

Unit 14 – Criminal law

Revision

What are the main differences between:

- Civil procedures/liability
- Criminal procedures/liability
- criminal law – part of the public law

Civil law	Criminal law
• deals with wrongs and problems/disputes between natural persons • resolves conflicts and disputes of a private interest between natural and juridic/legal person • makes it easier for private persons to get remedies in case they were injured • deals with behaviour that constitutes an injury to an individual or other private party, such as a corporation • regulates relationships between citizens • the purpose is to resolve disputes between private persons who want to protect their rights or interests	• deals with criminal offences which are sanctioned by the state and are a danger to society • interest in the security of the state • prosecutes criminal offenders • the state is responsible for more serious offences • system of law concerned with the punishment of individuals who commit crimes • state is a prosecutor → trial • the goal is to punish guilty offenders and protect citizens from criminals and their actions • the purpose is to protect public safety and interest and other members of the community • crime is a wrong/an offence committed against community

	Criminal law	Civil law
Parties	Prosecutor (usually the state)/ state attorney – tužitelj Defendant/ offender / wrongdoer	Claimant (alleged injured party) – tužitelj Defendant, caused civil wrong
Purpose	1. To prove guilt 2. To prosecute and punish an offender for crime committed	1. To establish liability – utvrditi pravnu odgovornost 2. To obtain a remedy for a wrong committed
Standard of proof	Beyond reasonable doubt – the evidence leaves no room for doubt	Balances of probabilities
Remedies (pravna sredstva)	1. non custodial sentences, fine (paid to the state), community service – rad za opće dobro 2. custodial sentence, imprisonment – zatvorska kazna	1. damages (compensation for damage paid to the claimant) – kompenzacija za štetu 2. injunction (prohibition of harmful conduct) – sudski nalog kojim se izriče zabrana

Part one: Crime, justice and the law

Juror	passes a verdict of guilty or not guilty
Defence counsel	represents clients and provides them with legal advice
Judge/magistrate	presides over court and pronounces sentence based on the evidence presented by either side
Expert witness	presents his/her expert opinion without having been a witness to any occurrence relating to the lawsuit or criminal case
Defendant	pleads guilty or not guilty
Prosecutor	brings a prosecution and outlines the facts of the case

Definition of crime

- A **crime** is any act or omission (of an act) that violates the law and is punishable by the state. Crimes are considered injurious to society or the community.
 - **state is the prosecutor**
 - violates the law – there is no sanction without the law
- A crime is an offence committed against community.
- **omission = propust, nečinjenje** – if the defendant who is legally bound to prevent consequences of criminal offense by the law, failed to do so, so such an omission is in fact equal to committing such an act by an action
- **act = radnja, činidba**

Purposes of criminal law, p. 130:

1. to protect individuals, property and social order
2. to regulate social conduct (regulirati društveno ponašanje/postupanje)
3. to provide sanction (for criminal offences)

Basic elements of a crime (p. 130)

- **A + B = a crime**
- **A = criminal act / guilty act (*actus reus*)**
- **B = criminal state of mind (*mens rea*)**
- **Explain the following two concepts (p. 131):**
 1. **proving the defendant's guilt beyond reasonable doubt** – the standard of proof that must be met by the prosecution's evidence in a criminal prosecution; that no other logical explanation can be derived from the facts except that the defendant committed the crime
 2. **presumption of innocence (point of conviction)** – a person is innocent until proven guilty

Classification of crimes, p. 130

- Analyse types and features of criminal offences.
- Provide examples for each type.

Summary only offences	Triable either way offences (kazneno djelo za koje se postupak može voditi na oba načina – sumarno i pred porotom)	Indictable only offences (teško kazneno djelo) - Triable on indictment – kaz. djelo za koje se postupak vodi temeljem optužnice
• driving offences • common assault	• theft • burglary • assault causing bodily harm • wounding without intent	• rape • murder • manslaughter • robbery

criminal damage (caused less than 5.000 £ worth of damage)	obtaining property by deception	conspiracy
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- Provide a definition (p. 130): **Adversarial/accusatorial system of law....**
 - relies on two-sided structure of opposing sides (adversaries)
 - impartial judge or jury
 - adversaries present evidence and arguments
- Akuzatorni se postupak** najprije javio u državama Grčke i Rima i temeljio se na ideji o kaznenom djelu kao privatnom deliktu. Poslije se afirmirao u Engleskoj, pa se proširio na gotovo sve države koje je Engleska kolonizirala (SAD, Australija, Novi Zeland, Indija, Pakistan i dr.) i u kojima suvremena inačica toga postupka postoji i danas. **Akuzatorni postupak** organiziran je kao **spor ravnopravnih stranaka pred nepristranim sudom koji osigurava pravičnost postupka i jednakost stranaka**. Glavna su mu procesna obilježja **javnost, usmenost, neposrednost i kontradiktornost**. **Teret dokaza leži na tužitelju**. U početku se kao **ovlašteni tužitelj** javlja **oštećenik**. Poslije se razvila doktrina prema kojoj je kazneno djelo povreda pravnoga poretka koji je dobro cijele zajednice, pa su zato **na tužbu ovlašteni svi građani (tzv. popularna tužba)**. U suvremenim se postupcima kao **tužitelj** javlja i određeno **državno tijelo (npr. policija, javni tužitelj)**. S političkog stajališta o tom se tipu postupka govori kao o demokratskom i s dobrim položajem okrivljenika, iako iskustvo pokazuje da su i u tom tipu postupka prava građana katkad bila na ozbiljnoj kušnji.
 - a) basic intent crimes** – crimes that are based on the recklessness or negligence of the defendant where the defendant intended the conduct but not the result (assault and battery – tjelesna povreda, manslaughter, negligent homicide, arson – palež, rape)
 - b) specific intent crimes** – intentional crimes for which the *mens rea* is written in the statute and where the defendant intended both the conduct and the result (murder, conspiracy, larceny – krađa, false imprisonment)
- Glavna su obilježja **inkvizitornoga postupka** podjela na **2 stupnja postupka: istragu** – glavni stadij, i **suđenje** temeljem spisa predmeta sastavljenog u istrazi. Istragom je započinjalo vođenje postupka po službenoj dužnosti (*ex officio*), potom su slijedili: sjedinjenje funkcija optužbe, obrane i suđenja; tajnost i pismenost postupka; **stroga dokazna pravila** profilirana u tzv. zakonskoj dokaznoj teoriji; **tortura** kao sredstvo pribavljanja iskaza okrivljenika koji je imao pravnu dužnost priznati krivnju; dokazna inicijativa u rukama suda (inkvizitorna maksima). Pravo na obranu praktično nije postojalo pa je položaj okrivljenika bio izrazito nepovoljan, posebice zbog mogućnosti da se, osim osuđujuće ili oslobađajuće presude, donese i presuda kojom se okrivljenik otpuštao od suđenja (→ **absolutio ab instantia**) i kojom se **trajno stavlja u položaj sumnjivca** protiv kojega je uvijek moguće nanovo započeti postupak.

Adversarial system	Inquisitorial system
- the defence and prosecution present their case to a judge or jury - the case is decided by a judge or a jury who does not investigate the facts but acts as an umpire - the judge remains neutral and passive throughout the proceedings - a case is argued by 2 opposing sides who have the primary responsibility for finding and presenting facts - the judge oversees the case and cannot ask to see additional witnesses	- the judge takes an active role while the lawyers have a passive role - the judge actively steers the search for evidence and questions the witnesses, including the defendant - the judge conducting the trial determines what questions to ask and defines the scope of the case under a highly structured and rigid code of rules - the judge and/or the jury determine the truth in the case

Criminal proceedings in England and Wales, p. 131

- the role of **CPS (Crown Prosecution Service)** – the CPS review the case after the police have investigated a crime, apprehended suspects, detained them in custody (if necessary) and charged them with a criminal offence
- **steps of criminal proceedings chronologically:**
 1. Being arrested and charged with a criminal offence
 - a) Being detained and produced before a Magistrates' Court
 - b) Being released by the police on bail (has to appear before a Magistrates' Court on a specified day)
 2. Proving the defendant's guilt, if the defendant pleads „not guilty“ and sentencing

Sentencing

- **What are the purposes (Criminal Justice Act 2003)?**
 - a) punishing offenders
 - b) reducing crime
 - c) reforming and rehabilitating offenders
 - d) protecting the public
 - e) **reparation** by defendants to persons affected by their offences (odšteta, naknada)
- **Criteria for passing sentences – the seriousness of the criminal offence**
- **Types of sentences related to the court that imposes them:**
 - a) **The Crown Court** – community sentence (doing unpaid work in the community), fine, imprisonment
 - b) **Magistrates' Court** – community sentence, punishments including up to 6 months in prison, a fine up to 5.000 £
- **aggravating and mitigating factors – otegotne i olakotne okolnosti**

Vocabulary I

- **ex. VI Read about criminal procedure in England and Wales and put the following steps of the pre-trial procedure in chronological order.**
 1. Investigating a crime
 2. Apprehending a suspect
 3. Detaining a suspect
 4. Reviewing a case by CPS
 5. Sending the suspect to court/releasing the suspect on bail
 6. Bringing charges against
- **ex. VII All criminal trials follow the same pattern. Each trial usually takes place in 11 stages. Put them in chronological order.**
 1. Arraignment (accusation – optužba, tužba)
 2. Jury is sworn in to try the case.
 3. Prosecution makes an opening speech outlining the case to the jury.
 4. Prosecution witnesses give evidence and are cross-examined by the defence.
 5. Prosecution makes a closing speech.
 6. The defence may make an opening speech.
 7. Defence witnesses give evidence and are cross-examined by the prosecution.
 8. Defence makes a closing speech.
 9. The judge sums up the case and gives instructions to the jury on relevant law.
 10. Jury renders a verdict, and if the verdict is “guilty”...
 11. Sentencing
- **ex. VIII Translate the following terms into Croatian**
 - a) **to bear the legal burden of proof** – snositi pravni teret dokazivanja

- b) **presumed to be innocent** – presumirati/pretpostaviti da je optuženik nevin
- c) **to hold a person liable for breaking the law** – smatrati osobu odgovornom za kršenje zakona
- d) **ignorance of the law is no excuse** – nepoznavanje zakona ne oslobađa od odgovornosti
- e) **to persuade the judge or jury beyond reasonable doubt** – uvjeriti suca ili porotu izvan svake razumne sumnje
- f) **to prove beyond reasonable doubt** – dokazati izvan svake razumne sumnje

- **ex. IX**

to violate the law	kršiti zakon
to issue a warrant for arrest	izdati nalog za uhićenje
to grant bail	osloboditi uz jamčevinu
to detain in custody	pritvoriti
to breach the law	kršiti zakon
to plead (not guilty)	(ne) priznati krivnju
to impose a sentence	izreći kaznu
to bring a charge/ a prosecution	podići optužnicu/pokrenuti kazneni progon
to commit a criminal offence	počiniti kazneno djelo
to break a rule	prekrišiti pravilo

Exemption from criminal liability, ex. X

- Study possible **defences** that can be used as evidence to disprove the *mens rea* of intent crimes → **EXEMPTION FROM CRIMINAL LIABILITY**
- to exempt a criminal defendant from criminal liability
- Translate the 7 possible defences into Croatian
 1. **self-induced (voluntary) intoxication (pijanstvo, stanje pod utjecajem opojnog sredstva)** – a state in which person's physical and mental capabilities impaired by the voluntary intake of any alcohol or drug can be used as evidence to disprove the *mens rea* of specific, but not basic intent crimes
 2. **involuntary intoxication** – lack of *mens rea* due to involuntary intoxication is a defence to crimes of both specific and basic intent
 3. **infancy (maloljetnost)** – a child under the age of 10 is not criminally responsible, a child over the age of 10 may be found to be criminally responsible (Crime and Disorder Act 1998, s.34)
 4. **insane automatism (nebrojivost, neuračunljivost)** – a defendant is insane if suffering from a defect of reason, caused by a disease of the mind, so as not to know s/he is doing or not to know that it is wrong
 5. **duress** – the defendant's will must be overborne by a threat of death or serious personal injury (no defence to murder or attempted murder)
 6. **necessity (nužda) (duress of circumstances – prijetnja, protupravna prisila, pritisak)** – it may be available as a defence where the defendant's action arises from a fear of death or serious injury (no defence to murder except in highly exceptional circumstances)
 7. **self-defence and prevention of crime** – a person is entitled to use reasonable force, at common law, in defence of themselves or another and also, under Criminal Law Act 1967, s.3 to prevent a crime or effect an arrest

Part two: Diminished responsibility

- Provide the definition of DR based on the **Homicide Act 1957**, page 136
 - **One of 3 special defences which exists solely for the offence of murder**
 - **Coroners and Justice Act 2009**
 - Has the effect of reducing murder conviction to manslaughter
 - The effect is to **reduce criminal liability** (not to absolve the defendant from liability completely)
- Study the case, pp. 136 – 137

- **smanjena ubrojivost/odgovornost**
 - a) because of a medical condition of the person who is charged
 - b) only for a murder
 - c) the purpose is reducing the most serious sentence for a manslaughter

Homicide Act 1957

- a person (D) who kills or is a party to the killing of another is not to be convicted of murder if D was suffering from an abnormality of mental functioning which arose from a recognized medical condition, those things are
 - a) to understand the nature of D's conduct
 - b) to form a **rational judgment (razumna procjena, prosudba)**
 - c) to exercise self-control

Actors and roles in a "crime story"

- **The criminal / accused** – commits a guilty act – **počinitelj**
- **Assisting offenders** – assist the main criminal – **supočinitelji**
- Persons guilty of incitement to a crime – **poticatelj na kazneno djelo**
- **The prosecutor** – secures conviction and proves that the accused is guilty of a crime

Which type of a crime is it?

1. An attempt to use illegal force on another person is **battery**
2. The unlawful killing of a person without malicious intent and therefore without premeditation is **manslaughter**
3. Any instance in which one party deceives or takes unfair advantage of another is **deception**
4. The unlawful taking of another's property using a dangerous weapon is **robbery**
5. The crime of breaking into a private home with the intention of committing a felony is **burglary**
6. Taking the property of another without right or permission is **theft**

Classification of criminal offences according to the target of offence

- a) Offences against the **State and public peace and order** (remećenje javnog reda i mira – npr. vandalizam, nedopušteni prosvjedi, tj. okupljanja)
- b) Offences against the **person** (protiv života i tijela)
- c) Offences against the **property** (protiv imovine)

Part I – Read the following parts from the Croatian Criminal Law and compare with the English system.

- **Članak 8.**
- (1) Kazneni postupak za kaznena djela pokreće Državno odvjetništvo u interesu Republike Hrvatske i svih njezinih građana.
 - *Criminal proceedings for criminal offences are initiated by the state attorney's office in the interest of the Republic of Croatia and all its citizens.*
- (2) Iznimno za određena kaznena djela može se zakonom propisati da se kazneni postupak pokreće privatnom tužbom ili da Državno odvjetništvo pokreće kazneni postupak povodom prijedloga.
 - *Exceptionally, for certain criminal offences, it may be prescribed by law that criminal proceedings are initiated by a private lawsuit or that the state attorney's office initiates criminal proceedings on the basis of a proposal.*
- **ZAKON O KAZNENOM POSTUPKU** (Urednički pročišćeni tekst, "Narodne novine", broj 152/08, 76/09, 80/11, 91/12 – Odluka i Rješenje USRH, 143/12, 56/13, 145/13 i **152/14**)

Part II – Children and criminal liability

- **Članak 10.**
- Kazneno se zakonodavstvo ne primjenjuje prema djetetu koje u vrijeme kad je počinilo kazneno djelo nije navršilo **14 godina** života.
- **Članak 11.**
- Prema mladim počiniteljima kaznenih djela (maloljetne osobe i mlađe punoljetne osobe) primjenjuje se ovaj Zakon osim ako posebnim zakonom za mlade počinitelje nije drukčije propisano.
- **Age limit in Croatia and England is different**
- **Croatia:**
 1. Djeca do 14. god.
 2. 16 – 18 god. mlađi počinitelj (maloljetnik)
 3. 18 – 21 god. mlađa punoljetna osoba

Translate the following definition of a guilty act.

- **KAZNENO DJELO – Članak 25.**
- (1) Kazneno djelo može se počiniti činjenjem ili nečinjenjem.
 - ***Criminal offence is committed by action or omission.***
- (2) Kazneno djelo je počinjeno nečinjenjem ako je počinitelj koji je pravno obvezan spriječiti nastupanje zakonom opisane posljedice kaznenog djela to propustio učiniti, a takvo je propuštanje po djelovanju i značenju jednako počinjenju tog djela činjenjem.
 - ***Criminal offence is committed by omission if the offender who is legally bound to prevent consequences of criminal offence defined by the law failed to do so. Such an omission, in effect and meaning, is equal to committing such an act by action.***

Vocabulary

- ex. VI
 - a) **to free from guilt or blame or their consequences –**
 - b) **to convict of manslaughter instead of murder –** conviction for murder was **substituted** for a manslaughter conviction
 - c) **to make or cause mental responsibility become worse –**
 - d) **to assert as a defence in court that at the time of the commission of the criminal act your mental responsibility was diminished –**

Unit 15 – The law of torts



- What is the main difference between a tort and a crime?
- Who are the participants in a tort case / in a criminal offence?

What are torts?

- **TORT = a less serious civil wrong** committed by **one citizen against another**
 - serious enough to merit **the award of compensation** to the **injured party**
 - not serious enough to amount to **the breaking of the criminal law** → **CIVIL LIABILITY** → **NOT PUNISHABLE BY THE STATE**
- **Offender = tortfeasor** / 'tɔ:(r)tfi:zə(r) / = **wrongdoer = počinitelj prekršaja**
- **Action taken by the injured party = oštećena strana**
- not all torts are less serious than crimes, it depends on consequences of the act (e.g. loss of life)

The law of torts

- **the law of torts is an area of civil or private law**
- it defines ways to compensate for the damage suffered and to deter from further harmful activity
- **3 main groups of torts (p. 141):**
 1. Torts affecting land
 2. Torts affecting civil liberties
 3. Negligence (nemar) vs. duty of care (dužna pažnja)

Part one: Torts against land and the person

Torts affecting land

Type of tort affecting land	Examples of such a tort	Most common remedy for such a tort (possible additional remedy)
Trespass to land	Unlawful invasion, direct interference with the land of another, e.g. parking	Injunction (the claimant may want to remove intruders from the land), damages ()

Nuisance	Indirect interference such as harmful emissions (fumes), loud noises and vibrations, water and other harmful liquids, fire	Injunction (it orders the defendant to refrain from the nuisance), damages
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- Discuss the difference between the 2 types of torts affecting land.

Division of torts affecting civil liberties

1. Trespass to the person – 3 forms

- Assault
- Battery
- False imprisonment

2. Defamation – 2 types:

- Libel
- Slander

- Explain the difference between:

a) battery and assault – battery involves **unlawful contact with the body of claimant**

- **assault** – direct and intentional causing of apprehension (strah, božan) and anticipation of battery, there is no requirement of physical contact, claimant didn't have to suffer damage
- **active threatening behaviour that puts the claimant in fear of possible battery**

b) libel and slander – slander defamatory statements made in transitory form; spoken word

- **libel** – made in permanent form; written words, broadcast statements, film, etc.
- what about cases when the third person records statements in transitory form?

- ex. IV Decide whether the following statements are true or false. If false, provide the correct information.

- Even though perceptions may differ, from the legal point of view **all torts are less serious than crimes**. **F**
- A lawsuit in trespass is **only** possible **if** the intruder has done damage to the property. **F (the property doesn't have to be damaged)**
- Rent-paying tenants **cannot** file a trespass lawsuit. **F (they can)**
- Loud music coming from a neighbouring flat may constitute grounds for a nuisance lawsuit. **T**
- An injunction** is the only legal remedy against nuisance. **F (damages also)**
- Pointing a gun without bullets at someone may constitute assault. **T**
- Battery refers to causing serious physical harm to another person. **T**
- False imprisonment can only be claimed **against the police**. **F (it can be claimed against security officers)**
- Libel is more serious than slander. **T**
- An injunction** is the most efficient legal remedy against defamation. **F (damages are more efficient)**

- ex. V

Actionable <i>per se</i>	Requiring proof of damage
- trespass - libel - assault - false imprisonment	- nuisance - battery - slander

- ex. VI replace the underlined expressions with expressions from the text.

- Torts are less serious than crimes, but also refer to unreasonable behaviour that usually results in injury. (conduct; harm)

- Građanski delikti manje su ozbiljni od kaznenih djela, ali se također odnose na nerazumno ponašanje koje obično rezultira ozljedama.
- 2. The injured person **files a lawsuit** against the **person who has committed the tort**. (takes/brings action; tortfeasor)
 - Ozlijeđena osoba podnosi tužbu protiv počinitelja delikta.
- 3. **Trespass** refers to **illegal entry** into another's land. (unlawful invasion)
 - Smetanje posjeda odnosi se na ilegalni ulazak na tuđu zemlju.
- 4. The tort of assault entails causing **fear** of violence. (threat)
 - Građanski delikt napada/nasrtaja/prijetecjeg ponašanja podrazumijeva pojavu straha od nasilja.
- 5. **False imprisonment** involves **loss of freedom** and can be claimed in cases of **illegal keeping in custody** by the police. (complete derivation of freedom; unlawful arrest and detention)
 - Protuzakonito uhićenje podrazumijeva gubitak slobode i može se podnijeti tužba u slučajevima nezakonitog policijskog pritvora.
- 6. If a **person renting a property** fails to pail the rent, they are considered to be trespassing. (tenant)
 - Ako najmoprimac ne plati najamninu, smatra se da ometa posjed.
- 7. **Slander** refers to untrue and **disparaging** statements in **impermanent** form. (false/derogatory; transitory)
 - Kleveta se odnosi na neistinite i omalovažavajuće izjave u nepostojanom obliku.
- 8. **Punitive** damages may be **ordered to be paid** on top of general damages in order to punish the defendant. (exemplary; awarded)
 - Uz ukupnu odštetu, može se naložiti i plaćanje kaznene odštete kako bi se optuženik kaznio.

• ex. VII

Noun	Adjective
tort	tortious
defamation	defamatory
libel	libellous
slander	slandorous

Part two: Defamation and freedom of expression

- tarnishing the reputation of someone (making factual assertion for which you cannot provide evidence of its truth)
 - **libel** – defaming somebody through print or broadcasting
 - **PERMANENT FORM**
 - **slander** – spoken defamation
 - **TRANSITORY FORM**
1. Read the introduction of the text, p. 147 and explain **the aim of the reform of libel laws** in England and Wales.
 2. Analyse **the measures of the Defamation Act (2013)** and complete the table.

Aim	Who?	The action
Protection	scientists, academics	publish peer reviewed materials
Protection	operators of websites hosting user-generated content	a person who feels an online statement against them was defamatory can directly resolve the dispute with the person who posted that statement
Prevention	publisher	a single publication rule – prevents repeated claims against a publisher about the same material
Action to address libel tourism	those with little connection to england and wales	tightening the test for claims

Protection	secondary publishers (booksellers, newsagents)	removes the possibility of an action for defamation being brought against them if it can be brought against the primary publisher
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- **peer review – recenzirati**
- **RH – novinarsko društvo**

What is the meaning of libel tourism?

- **The act of suing a writer for alleged defamation in a foreign jurisdiction where there are weak libel laws.**
- **The term libel tourism** was coined somewhat cynically to describe taking advantage of the legal system of a foreign country where it is easier for you to file a libel lawsuit against a writer or journalist for publishing serious criticisms of or accusations against you.
- The UK, for example, has been a favorite venue for a so-called **libel tourist** to sue for libel, because traditionally under British law the burden of proof rests with the defendant (the accused author and/or publisher), who must establish to the satisfaction of both judge and jury that the published statements in dispute are not defamatory.
- SOURCE: <http://www.dictionary.com/browse/libel-tourism>
- Explain the two key concepts TRUTH and SERIOUS HARM as defined in **the Defamation Act 2013. (Supply terms related to the two concepts.)**
 1. **Truth** – imputation (imputacija, pripisivanje)
 - defence to an action for defamation
 2. **Serious harm** – serious financial loss
 - A statement is not defamatory unless its publication has caused or is likely to cause serious harm to the reputation of the claimant.

Vocabulary

- **ex. VI Find synonyms of the following words in the text**
 - a) separate (adj.) – distinct
 - b) largely, for the most part – substantially
 - c) rescinded or annulled (poništiti, proglašiti ništavnim, ukinuti) – abolished, repealed
 - d) accusation, suggestion, implication – imputation
 - e) communicated – conveyed

Part three: Negligence

- an unreasonable breach of duty by one person to another the failure to take reasonable care to avoid foreseeable injury to others
- Example: the modern law of negligence started with a decomposed snail contained in a drink consumed in a public bar; the **manufacturer of the drink was sued by the consumer for her consequent illness** (Donoghue v Stevenson, 1932)

DONOGHUE v. STEVENSON
Who is your neighbour?



Judgement delivered by Lord Atkin 26 May 1932 – neighbour principle

- derived from the Christian principle of “loving your neighbour” in Luke 10
- *The rule that you are to love your neighbour becomes in law you **must not injure your neighbour**; and the lawyer's question: Who is my neighbour? receives a restricted reply. You must **take reasonable care to avoid acts or omissions which you can reasonably foresee** would be likely to injure your neighbour.*

Explanation of the “neighbour” principle

- Who, then, in law, is my neighbour?
 - The answer seems to be – persons who are so closely and directly affected by my act that I ought reasonably to have them in contemplation as being so affected when I am directing my mind to the acts or omissions that are called in question . . .

Elements of negligence claim

1. Duty of care (towards a plaintiff) – dužna pažnja

- a person owes a duty of care to another when the reasonable person would foresee that the other will be exposed to the risk of injury
- *Eg. – a driver of a vehicle owes a duty to anyone within the area of risk when moving - other road users, pedestrians, the owner of adjacent land and buildings*
- **Read the text p. 150 -152 and answer the following questions:**
 - I. Who typically owes a duty of care?
 - II. What is the connection between a duty of care and foreseeability of harm?

2. Breach of duty (on the part of the defendant) – kršenje/povreda obveze dužne pažnje

- unreasonable running a risk and harming to the others or their property
- **Read the text p. 152 and explain the following concepts:**
 - I. Standard of care – behaviour below the standard
 - II. Professional standard

3. Factual causation (between the breach and the harm) – uzročno posljedična veza

- **factual causation** – a defendant is held liable if the particular acts or omissions were the cause of the loss or damage sustained (US – proximate cause)
- **basic test of causation** – to ask “but for, or without my breach of duty would you be harmed?” – if NO – I am liable
- **Read the text p. 153 and explain the following concepts:**
 - a) **Balance of probabilities** – it is more likely than not that the defendant’s negligence caused the damage → proves the causal link between negligent act and the damage

- b) **Contributing factor (non-tortious risk)** – risks unrelated to negligence
- c) **Contributory negligence** – a person's carelessness for his own safety or interests which contributes to damage suffered by him as a result partly of his own and partly of the fault of another person (claimant's own behaviour contributed to the damage)
- d) **Chain of causation – remoteness of damage** = the defendant will not be liable if the damage was too remote from the negligent act (another act occurred between the negligent act and the damage → the chain of causation was broken)

4. **Damage (injury or harm as a consequence of the breach) – šteta**

- provable injury – a precondition for successful negligence suits
- **Damage may be:**
 - a) Physical (personal injury)
 - b) Economic (pure financial loss)
 - c) Both (financial loss of earnings consequent on a personal injury)
 - d) Reputational (in a defamation case)
 - e) Emotional distress

Analysis of negligence cases

- Study the medical cases p. 155 – 156 and write a short text (300 – 500 words) about the elements of the negligence claim.
- Name all the possible arguments that a lawyer could use:
 - a) **on behalf of the claimant**
 - b) **on behalf of the defendant**

Vocabulary

Essential expressions

- a tort against
- a tort affects (land /rights)
- a plaintiff/claimant
- a defendant
- to bring a civil action
- a damage ≠ damages
- negligence ≠ duty of care
- nuisance (continuous disturbance)
- trespass to (land/person)
- false imprisonment
- assault and battery
- to attack reputation
- to ensure effective protection
- defamation laws
- **slander – transitory form**
- **libel – permanent form**
- a remedy, possible remedies – pravno sredstvo
- an injunction
- **ex III Decide whether the following statements are true or false.**
 - 1. Negligence includes breach of duty of care and **breach of contract**. **F**
 - 2. Only acts of omissions **against people living next-door** count as negligence. **F**
 - 3. Not all careless behaviour can be considered negligent in law. **T**

4. Negligence can be claimed even if the damage could not have been expected.
 5. Having an insurance policy against negligence claims **protects you against legal liability** for negligence. **F**
 6. The 'floodgates' argument refers to encouraging people to sue for negligence as much as possible.
- **ex. V Complete the sentences with the words provided. You may have to change their form. (attest, contemplate, deem, entail, frivolous, omission, suffice, warrant)**
 1. Being a medical doctor **entails** a lot of responsibility.
 - Rad liječnika dolazi s velikom odgovornošću.
 2. You don't need to buy a gift. A simple birthday card will **suffice**.
 - Ne morate kupiti poklon. Jednostavna čestitka bit će dovoljna.
 3. She contemplated the complex relationships between partners in the law firm she was working in and concluded that a firmer approach was warranted.
 - Analizirala je složene odnose između partnera u odvjetničkom uredu u kojem je radila i zaključila da je oštiji pristup opravdan.
 4. Three witnesses were called to **attest** to her integrity and loyalty.
 - Pozvana su tri svjedoka da svjedoče o njezinoj iskrenosti i odanosti.
 5. Richard's failure to report the fact that he had lost the case file was deemed a serious **omission** on his part and he was subsequently dismissed from employment.
 - Richardov promašaj da prijavi činjenicu da je izgubio spis slučaja smatrano je velikim propustom s njegove strane, a nakon toga je otpušten s posla.
 6. Do you think that suing a supermarket chain for negligence because you have found a worm in the lettuce you bought there would be considered a **frivolous** lawsuit?
 - Mislite li da će se tužba lanca supermarketa zbog nemara jer ste pronašli crva u salati koju ste tamo kupili smatrati neozbiljnom tužbom?
 - **ex. VI Decide whether the following statements are true or false.**
 1. A defendant whose negligence has been proved can still be found not liable for negligence. **T**
 2. The aim of the 'but for' test is to connect the defendant with the negligent act. **T**
 3. If damage is claimed to have occurred through negligence, but might also have occurred from other, non-tortious, sources, a negligence claim **will be dismissed**. **F**
 4. The negligent risk and the tortious risk are one and the same. **T (tortious risk – rizik od počinjenja građanskog delikta)**
 5. The amount of compensation may be affected by risks unrelated to negligence. **T**
 6. A natural event does not affect liability for negligence. **F**
 7. In product liability, **only the original manufacturer** can be found automatically liable for damage caused by a faulty product. **F**

- **ex. VIII synonymous expressions**

bear	carry, assume
engage in	do or take part in something
liable	legally responsible
likely	probably
materially	significantly
occur	happen, take place
remote	far away, distant
sustain	suffer, support as just or true

- **Read the introductory paragraph, p. 158 and complete the notes about the functions of Contract law.**
 1. to regulate the formation of contracts – način sklapanja ugovora
 2. to provide grounds for the contracting parties to be bound by the contract – ugovorne strane su obvezane ugovorom
 3. to provide grounds for the courts to enforce a contract – sud će zakonski provesti odredbe ugovora
 4. to answer the questions about:
 - a) the existence of a contract (gaps, is it properly written?)
 - b) the breach of contract
 - c) the compensation for the injured party

Part one: Contracts

What is a contract?

- *Fill in the gaps: agreement, obligation, consideration, capacity, fraud, illegal*
 - It is an agreement that creates a binding (1) **obligation** upon the parties. The essentials of a contract are as follows: mutual (2) **agreement**; a legal (3) **consideration**, which in most instances need not be financial, parties who have legal (4) **capacity** to make a contract; absence of (5) **fraud** or duress; and a subject matter that is not (6) **illegal** or against public policy.

Vocabulary

- Do the exercise II, p. 157, beginning of the Unit 16
 - Explain the phrases and translate them into Croatian
 - Match the phrases and the given definitions

Phrase	Definition	Translation
Legal capacity	Power provided under law to a natural person or a judicial person to enter into binding contracts	Poslovna sposobnost
Consideration	Something of value which must be given for a contract to be enforceable	Protučinidba
Acceptance	Statement given by the person receiving the offer by which he/she accepts the offer subject to contract (a precondition for a contract to be legally binding)	Prihvat
Intention to be legally bound	An expression of willingness to contract on specified terms, made with the intention that it is to be binding once accepted by the person to whom it is addressed	Namjera biti pravno vezan
Offer	A proposal to enter into an agreement, usually accompanied by an expected acceptance, often has a due	Ponuda
Compensation	Pecuniary remedy awarded to an individual who has sustained an injury to replace the loss caused by the injury	Naknada štete, kompenzacija

General requirements for contract formation:

- possessing legal capacity (two of more parties)
- the object of the contract must be acceptable by the law
- in some cases a particular form is required, a contract made in writing (e.g. sales contracts)

Key elements of contract formation

- **offer (offeror) + acceptance (offeree) + consideration = enforceable contract**
- **enforceable contract = legally valid and binding** (the courts can force the parties to abide by it, they expressed the intention to be legally bound)

Consideration → Common law jurisdiction

- **both parties to a contract must bring something to the bargain:**
 - a) **money**
 - b) **anything of value to the parties**
- **eg. 1**
 - Party A – a farm (consid.)
 - Party B – a million dollars (consid.)
- **eg. 2**
 - Party C – clerical work (consid.)
 - Party D – food and shelter (consid.)
- **civil law jurisdictions** – no consideration (a promise does not need consideration to be enforceable)

Agreements becoming contracts

- agreement + intention to be legally bound (legal consequences) + **signature** as the **expression of will** to be legally bound = contract
 - a) **commercial agreements** – presumed to be contracts
 - b) **family and social agreements** – has to be proved that it was intended to be legally bound

Different forms of a contract

- **2 types of contract:**
 1. **Express** – can be in 2 forms
 - A) **Written**
 - B) **Oral**
 - 3 elements are present
 2. **Implied** – 3 elements are implied

EXPRESS versus IMPLIED CONTRACT

- **An express contract** is one in which the terms are expressed verbally, either orally or in writing.
- **An implied contract can either be implied in fact or implied in law**. **A contract which is implied in fact** is one in which the circumstances imply that parties have reached an agreement even though they have not done so expressly.
- *(E.g. by going to a private doctor a patient agrees that he will pay a fair price for the service. If he refuses to pay after being examined, he has breached a contract implied in fact.)*

An example of...

- defining contractual obligations in form of a sign on a parking area – **CONTRACTUAL AGREEMENT**
- by parking your car on the parking area you basically „sign” the contract and accept the terms / obligations



What form does a contract take?

- Fill in the gaps. Two words are too much. (*signed, rights, oral, goods, property*)
 - In general, contracts may be either **oral** or written. Certain types of contracts, however, in order to be enforceable, must be written and **signed**. These include contracts involving the sale and transfer of **goods**.
- Read the text, p. 158 (end of the paragraph 2) and find more examples for written contracts.

Structure of the contract

- Read the text, p. 159. and name the **MAIN CLAUSE TYPES** included in most contracts + the key information related to them:
 - To su stavke ugovora koje govore o nečemu
1. **Parties** – names, addresses, identification numbers, etc. (ugovorne strane)
 2. **Charges** – price for the good or services, date of payment to be made (troškovi)
 3. **Term of contract (duration, trajanje ugovora** → važno za employment contract) – the length of the contract, options to continue it
 4. **Termination (raskid ugovora)** – the circumstances under which the parties can terminate the c.
 5. **Confidentiality (tajnost/povjerljivost podataka, obveza čuvanja)** – the information which should be treated as private and be protected, the circumstances in which it can be used or disclosed
 6. **Warranty/Guarantee (jamstvo, garancija)** – provision of a certain warranties by the party providing goods concerning the delivery of the goods/services
 7. **Indemnity (naknada štete)** – an obligation to compensate the indemnified party by making a money payment for some defined loss or damage
 8. **Force Majeure** – designed to protect against failures to perform contractual obligations where and when the performance of the contract is impossible through an **unavoidable event** beyond party's control (e.g. natural disaster, civil unrest)
 9. **Assignment (prijenos prava)** – prohibits or permits the transfer of contractual rights and responsibilities to another party
 10. **Entire agreement/Integration/Merger (cjelovitost ugovora)** – states that the contract itself represents a **complete integration** (= the sole and entire agreement) between the parties, includes any prior terms discussed in earlier negotiations
 11. **Applicable law/Governing law** – which law governs the contract

Defective contract, p. 159 – 160

- Complete the presentation of the three different ways in which contracts can be set aside:
 1. **Void** – a contract never came into existence, lacks some of the essential requirements, is null and without a legal force
 2. **Voidable** – initially valid contract can be annulled by rescission by the court, on the grounds of mistake, duress, misrepresentation, undue influence, incapacity
 3. **Unenforceable** – has all elements of a valid contract, but lacks some particular type of evidence, has a technical defect, e.g. in an action for damages or specific performance

The end of a Contract, p. 160

- Study the ways in which the terms of a contract can be discharged. Complete the English terms:
 - **Ispunjenje ugovora (ugovoren posao je realiziran) = PERFORMANCE** – terms of a contract are fully carried out
 - **Prestanak ugovora zbog povrede odredbi ugovora = BREACH** – one party performs defectively or not at all
 - **Obostrano odustajanje od ugovora = AGREEMENT** – parties agree to terminate the contract to release one or both of them from their obligations
 - **Prestanak ugovora zbog nemogućnosti ispunjenja obveza = FRUSTRATION** – fulfilment of the c. is impossible due to events that make the performance impossible/illegal/pointless

Remedies for breach of contract

- The primary remedy is to CLAIM DAMAGES
- If not adequate → SPECIFIC RELIEF
- Explain each of the remedies:
 1. **Award of money damages** – primary remedy to compensate the innocent party for losses that result from not receiving the performance that was due under the c.
 2. **Order of specific performance** – a court decree that requires the breaching party to perform their contractual obligation
 3. **Injunction** – a court order to the defendant not to do something
 4. **Contract rescission** – cancellation of the contract
 5. **Contract modification** – rewriting the c. stating clearly the party's intent

Vocabulary

IV Read about the formation and structure of a contract and complete the following statements

1. **The essential elements of an enforceable contract are:** offer, acceptance, consideration, the intention to be legally bound and legal capacity.
 2. A legally binding contract can take different forms – it can either be express – written or oral, or implied
 3. There are certain types of contracts that must be in writing: c. containing a guarantee, c. including sales of land, the transfer of shares, the lease of land
 4. **Conditions** of a contract are indispensable for the purpose of the c. and must be fulfilled
 5. **Warranties** are not essential to a contract and usually refer to a written assurance or promise given by one party to the other about the state of a product
 6. Some of the **most common clauses** included in almost every contract are parties, charges, terms of contract, termination, confidentiality, warranty, indemnity, force majeure, assignment, entire agreement/integration/merger and applicable law.
- to form/enforce/breach/enter into/set aside a contract
 - a breach of contract
 - consideration

- offer and acceptance
- offeror and offeree (ponuditelj i ponuđenik)
- an implied/express/legally binding contract
- valid; invalid
- a void/voidable/unenforceable contract
- mistake
- misrepresentation
- duress
- undue influence
- incapacity
- an order of specific performances

Collocations

- Choose one of the listed nouns for each of the following verbs. Use the text. (a binding offer; requirements; legal capacity; a contract; a contract; requirements)
 1. To comply with
 2. To make a binding offer
 3. To fulfill/meet requirements
 4. To enter into a contract
 5. To set aside
 6. To possess legal capacity

VI Complete the definitions of the terms from the text

1. **Damages** Is the most frequent remedy for breach of contract by which the injured party is financially compensated for the loss.
2. **Voidable** contract is initially valid but can be annulled if the parties request it.
3. **Unenforceable** c. contains all the necessary elements but has a certain technical defect because of which it cannot be enforced.
4. If the terms of a contract are carried out entirely the contract is said to be ended by **performance**.
5. **Rescission** is used as a remedy when there is a need to cancel the contract.
6. If the parties agree to release each other from their contractual obligations the contract is said to be ended by **agreement**.
7. **Breach** of the contract happens when one of the parties refuses to perform or performs defectively
8. **Frustration** means that the contract is ended because some events make its performance impossible.
9. **Specific performance** refers to a court order that a breaching party perform an obligation.
10. **Injunction** refers to a court order that a breaching party not to do something.
11. **Void** contract lacks some of the essential elements and is not valid from the start.

VII Find the Croatian equivalents

to enter into a c.	Sklopiti ugovor
to enforce a c.	Provesti ugovor
to breach a c.	Povreda ugovorne obveze, kršenje ugovora
to rescind a c.	Opozvati ugovor
to declare a c. invalid	Izjaviti/proglasiti ugovor nevažećim
to discharge a c.	Ispuniti/izvršiti ugovor (4 načina)
to annul a c.	Proglasiti ništavnim, poništiti, ukinuti
to terminate a c.	Raskinuti ugovor

Part two: A sale of goods contract

- Analyse the contract and complete the titles of missing terms /clauses
- Make notes for the terms in the table.

Term	Key information
Terms (predmet ugovora)	Description of the subject matter – sold goods; quantity, price, date
Risk of loss (rizik od gubitka)	
Acceptance	
Warranty of title (potraživanje trećih osoba)	
Taxes	All sales taxes, tariffs, governmental charges – buyer's responsibility
Applicable/governing law (mjerodavno pravo)	
Force majeure	
Entire agreement	
Attorney fee provision	Sales contract → reasonable attorney fees + costs + expenses → to resolve the dispute and to enforce the final judgement
Acknowledgments	By seller, by buyer, state and county

- to be invoiced → receive invoice = ispostaviti račun
- **payment terms – uvjeti plaćanja**
- title – odnosi se na treću osobu (third party)

Translation practice

- *Translate the following sentences from the Croatian ZOO (Zakon o obveznim odnosima)*
- **Art. 253. Ponuda/Offer**
 - Ponuda je prijedlog za sklapanje ugovora učinjen određenoj osobi koji sadrži sve bitne sastojke ugovora.
 - Offer is a proposal for entering into a contract, made to a certain/specific party which includes/that includes all the essential clauses/terms of contract.
- **Art. 262. Prihvrat ponude/Acceptance of an offer**
 - Ponuda je prihvaćena kad ponuditelj primi izjavu ponuđenika da prihvaća ponudu.
 - Offer is accepted/consider to be accepted when the offeror receives the offeree's acceptance/the statements of the offeree about acceptance of the offer.
- **Art 269. Činidba /Consideration**
 - Objekt ugovorne obveze je činidba koja se može sastojati u davanju, činjenju, propuštanju ili trpljenju.
 - The object of contractual obligation is a consideration which can take a form/be in a form of giving, acting, omitting or in a form of endurance.

Unit 17 – Family law

Family law...

- Governs legal **responsibilities** and relations of parties **usually related by blood...** (adoption – no blood relationship)
- Read the beginning of the text, p. 169. and complete the list of family relations and child related problems:
 1. **Marriage**
 2. **civil union (registered partnerships)**
 3. **domestic/civil partnership (same-sex couple)**
 4. **adoption and surrogacy**
 5. **child abuse and child abduction**

Is it possible to define family in the 21st century?

- Complete the following definition. Two words are too many. (obligations, phenomenon, share, members, group, rights)
 - A family can be defined as a primary group whose members assume certain obligations towards each other and generally share a common residence.

Part one: Family and domestic relations

- Marriage can be defined as a voluntary union for life of one man and one woman to the exclusion of all others. T
- Family can be defined as a group that generally shares the same residence.
- A marriage is **void** if one of the parties did not give their consent. F – voidable
- Until 1969 matrimonial offences were the sole grounds for divorce in the UK. T

Marriage definition

- **Marriage is a voluntary union for life of one man and one woman to the exclusion of all others.** (Hyde v Hyde and Woodmansee, 1866)
 - **monogamous**
- **The intention** of the parties must be **union for life**.
- English law, however, recognizes **judicial divorce** (dissolution of marriage)
- **2013**. – passage of the Marriage Act → **same sex marriages legal** in England and Wales

Regulations about starting a marriage

- Marriage is one of the easiest contracts to enter into, but it has far reaching consequences:
 - a) for the parties themselves
 - b) for their children
 - c) for the whole society

Termination of marriage (prestanak braka)

- Read the text passage on marriage, p. 170 and name the reasons for the termination of marriage.
 1. Death
 2. Divorce
 3. Annulment
- **Explain the difference between:**
 - a) **nullity (ništetnost)** – for legal purposes, there never was a valid marriage
 - b) **divorce** – termination of what had been a valid marriage
 - c) **dissolution (civil partnerships)** -

Who can marry?

1. **The age factor** – required majority (lowered from 21 to 18 by the **Family Reform Act 1969**)
 - if either party is under 16, there can be no marriage (if a ceremony is performed, it is not **valid**)
 - if one of the parties is 16 or over, but under 18, the **consent** of both parents is needed
2. **The question of consanguinity** – relationship by blood is the second **chief bar** to marriage

Void marriage (ništetan)

- **A marriage will be void:**
 1. if the parties are younger than 16 years old
 2. if their parents don't give/provide their consent if one of the parties is between 16 and 18 years old
 3. if the parties are within prohibited degrees (consanguinity and affinity – tazbisnko srodstvo)

4. if one of the parties already has a spouse (≠monogamy)

Voidable marriage (pobojan)

- **A marriage will be voidable:**
 1. if either party has not given its consent (in consequence of **duress, mistake, unsoundness of mind**, etc.) = lack of consent
 2. if either party suffers from mental disorder
 3. if the respondent was pregnant by a third party in the time of marriage
 4. if the marriage was not consummated owing to incapacity of either party

Civil partnership (životno partnerstvo osoba istog spola)

- **Civil Partnership Act (2004)** – relationship between two persons of the same sex (civil partners)
- It **can end** through: **death, dissolution** (*raskid*), **annulment** (*poništaj*)
- CROATIA – **Zakon o životnom partnerstvu osoba istog spola, NN 92/14**, HS, Zagreb, 15. srpnja 2014.

Divorce (razvod)

- Fault-based, **matrimonial offences** = the sole grounds for divorce until the Divorce Reform Act 1969
 - The Matrimonial Causes Act 1973 → there is only one ground for divorce = **irretrievable break down of a marriage** (*teško i trajno poremećeni bračni odnosi*)
 - **PROCEDURE**
 1. **a petition for divorce → a court hearing**
 - Petitioner (files a petition with a divorce court) v. Respondent
 2. **Petitioner providing grounds for divorce (*pravne osnove za razvod braka*)**
 - Read the text passage on divorce, p. 171 and complete the list of possible grounds:
 - a) the respondent has committed adultery
 - b) the behaviour of the respondent was unreasonable (e.g. drinking, gambling, all kinds of addiction)
 - c) desertion by the respondent for a continuous period of at least 2 years – napuštanje supružnika
 - d) separation for the period of at least 2 years with the consent of spouses
 - e) separation for the period of 5 years
- } Odvojeni život
- **The duty of the court to inquire into the facts alleged by the petitioner and by the respondent.**

The Divorce Petition (*zahtjev za razvod braka*)

- The divorce petition is a formal complaint, typically put together by one spouse with the help of a divorce lawyer
 - it's filed with the divorce court, divorce centers
 - usually must be filed in the county of residence of the person filing for divorce regardless of where the couple was married
 - **pay a £550 fee to start a divorce**
- The spouse who files the divorce petition is known from that point forward as the petitioner, and the other spouse as the respondent.

Responding to a divorce petition

- the divorce centre sends a 'divorce petition' to a respondent (RES)
- **RES also gets:**
 - a notice of proceedings form (case number and instructions for further steps)
 - an acknowledgment of service form (RES responds by filling in the acknowledgment of service form)
- **Deadline of 21 days**, husband or wife can continue with the divorce as if RES agrees in cases when the deadline is not kept.

Possible scenarios

1. **Agree with the divorce** – fill in and return the acknowledgment of service form to the divorce centre within 8 days
→ the divorce will go ahead
2. **Disagree with the divorce** – fill in the acknowledgment of service form and return it within 8 days (the part of the form related to the defending the divorce)
 - the divorce centre sends copies to husband or wife.
 - deadline of 21 days to say why RES is defending the divorce. This is called **‘giving an answer’**.
3. **RES starts his/her own divorce proceedings** – if there is evidence of the petitioner’s e.g. adultery or unreasonable behaviour

Court hearing

- **When:**
 - a) divorce is defended
 - b) both sides file divorce petitions
- a court will usually hold a hearing to discuss the case
- husband or wife will usually have to attend to try to come to an agreement over the divorce

Applying for decree nisi (*privremeno rješenje o razvodu braka*)

- possibility of applying for a decree nisi if a husband or a wife doesn’t defend divorce petition.
- **A decree nisi** = a document (court order) saying that the court doesn’t see any reason why you divorce could not be granted
- **If the judge agrees, the court sends to both spouses**
 - a) a certificate of entitlement to a decree
 - b) a decree nisi (a few weeks later)
- **Waiting at least 6 weeks** (a chance to reconsider their relationship or to object to some aspect of the divorce) before applying for a **‘decree absolute’** = the legal document that ends a marriage

Getting the decree absolute (*končano rješenje o razvodu braka*)

- **The court will check that:**
 - time limits have been met
 - there are no other reasons not to grant the divorce
 - The court will then send both ex-spouses a decree absolute.
- Once they get the decree absolute, they are divorced, no longer married and free to marry again if they wish.

Consequences to be considered...

- **The legal process for divorce may also involve issues of:**
 - spousal support
 - child custody
 - child support
 - distribution of property
 - division of debt

Domestic violence (*obiteljsko nasilje*)

- ... it is an incident of **threatening behaviour**, violence or abuse (psychological, physical, sexual, financial or emotional) between family members or intimate partners....
- **Covered by The Family Law Act 1996**

- The VICTIM (the applicant) can seek a court order that the ABUSER (the respondent) stops molesting him/her/them → non-molestation orders / occupation orders

marriage certificate	vjenčani list
registration of marriage by Registrar	matičar sklapa brak
bride and bridegroom	nevjesta i ženik
office of the Registrar	ured matičara
fiancé and fiancée	zaručnik i zaručnica

Expressions from the Unit 17

- conditions for a valid marriage
- to be voluntary / monogamous
- recognize judicial divorce
- the annulment / termination of marriage (to annul / terminate)
- the intention of the parties must be union for life
- regulations about starting a marriage
- civil partnership (partners of the same sex)
- to enter into a contract
- the relationship of consanguinity /affinity
- minority and consanguinity are bars to marriage
- the age of majority is 21/18
- the marriage ceremony is (not) valid
- to obtain the consent of parents
- to give consent in a particular form
- the marriage is not void, but it may be voidable
- to rely on the misrepresentation
- grounds for divorce
- a petition for divorce (petitioner and respondent)
- to live apart (separation)
- to desert the petitioner (desertion)
- divorce decree (the decree nisi, the decree absolute)
- domestic violence (threatening behaviour)
- to seek court order (the applicant – the abuser)

Part two: From the Family Law Act 1996

- Read and analyse the Chapter 27 from the **Family Law Act 1996** and do the related exercises, pp. 174 – 176.
 1. The institution of a marriage is to be supported.
 2. The parties to a marriage which may have broken down are to be encouraged to take all practicable steps to save the marriage
 3. A marriage which has irretrievably broken down and is being brought to an end, should be brought to an end with minimum distress.
 4. Any risk to one of the parties of the marriage of violence from the other party should be removed or diminished.

Separation	Odvojeni život
Mediation	Medijacija, posredovanje
Molestation	napastovanje
Tenancy	Stanarsko parvo, posjed stana (najam/zakup)
(Marriage) counselling	(Bračno) savjetovanje
Irretrievable breakdown	Trajno poremećeni bračni odnosi
Minimum distress	Najmanje moguće stanje uznemironosti/bola/tuge
Unreasonably incurred costs	Neopravdano nastali troškovi

- Divorce under **the Matrimonial Causes Act 1973** is granted on the basis of a petition where one party (the petitioner) presents an application for divorce which the other party (the respondent) may choose either to defend or not. The sole ground for divorce is that the marriage has irretrievably broken down. But the only way of proving irretrievable breakdown is by proving one of the 5 facts. If none of the facts is proved then a divorce cannot be granted.
- **Translate into English. Pay attention to the specific terminology.**
 - BRAK**
 - Brak je zakonom uređena životna zajednica žene i muškarca.
 - Marriage is a
 - SKLAPANJE BRAKA**
 - Brak se sklapa suglasnom izjavom žene i muškarca u građanskom ili vjerskom obliku.
 -
 - Brak u građanskom obliku sklapa se pred matičarom.
 -
 - Brak se u vjerskom obliku s učincima građanskog braka sklapa pred službenikom vjerske zajednice koja s Republikom Hrvatskom o tome ima uređene pravne odnose.
 -

Revision

1. Domestic violence can be defined as any incident of threatening behaviour, violence or abuse between adults who are or have been intimate partners or family members, regardless of gender and sexuality.
2. Abuse may occur in many forms and is not restricted to people living together, but also includes violence between family members and intimate partners.
3. Under the Family Law Act 1996, a victim of domestic violence (the applicant) can seek court order that the abuser (the respondent) does not molest them (**non-molestation order**) and secondly, that the molester leave and stay away from the family home (**occupation order**).

Common residence	Zajedničko prebivalište
Civil partnership	Životno partnerstvo osoba istog spola
Parental consent	Suglasnost, pristanak roditelja
Unreasonable behaviour	Nerazumno ponašanje
Voluntary marriage	Dobrovoljno sklopljen brak
Valid marriage	Valjani brak

To hear a petition	Saslušati zahtjev
To commit adultery	Počiniti preljub
To satisfy the court	Prezentirati argumente pred sudom na zadovoljavajući način
To grant a decree	Donijeti konačno rješenje
To desert the petitioner	Napustiti supružnika (onog koji je pokrenuo razvod braka)

Unit 18 – Company law

- Different business activities – different business organisations

Different structure of business organisation

- An individual entrepreneur – **sole trader**
- More than one person involved:
 - a) Individuals, who are interested in starting a business – **association of persons**
 - b) Potential of investing into a business – **association of capital**

Global reading – pg. 178 – 190

- Scan the text and provide the text paragraphs with the appropriate name of a business organisation.
- Which business organisations are defined by the **Croatian ZTD (Zakon o trgovačkim društvima)**?
 - Trgovac je, ako ovim Zakonom nije drugačije određeno, svaka osoba koja samostalno trajno obavlja gospodarsku djelatnost radi ostvarivanja dobiti proizvodnjom, prometom robe ili pružanjem usluga na tržištu.
 - Osobe koje se bave slobodnim zanimanjima uređenim posebnim propisima smatraju se trgovcima u smislu ovog Zakona samo ako je to u tim propisima određeno.
 - Trgovačka društva jesu javno trgovačko društvo, komanditno društvo, dioničko društvo, društvo s ograničenom odgovornošću i gospodarsko interesno udruženje (u daljnjem tekstu: trgovačka društva)
 - Javno trgovačko društvo, komanditno društvo i gospodarsko interesno udruženje su **društva osoba**, s dioničko društvo i društvo s ograničenom odgovornošću **društva kapitala**.

Pojam trgovca i trgovačkoga društva

Članak 3. (NN 40/19)

(1) **Trgovac** je, ako ovim Zakonom nije drugačije određeno, osoba koja samostalno trajno obavlja gospodarsku djelatnost radi ostvarivanja dobiti proizvodnjom, prometom robe ili pružanjem usluga na tržištu.

(2) Osobe koje se bave slobodnim zanimanjima uređenim posebnim propisima smatraju se trgovcima u smislu ovoga Zakona samo ako je to u tim propisima određeno.

(3) Trgovačka društva jesu javno trgovačko društvo, komanditno društvo, dioničko društvo, društvo s ograničenom odgovornošću i gospodarsko interesno udruženje (u daljnjem tekstu: trgovačka društva).

(4) Javno trgovačko društvo, komanditno društvo i gospodarsko interesno udruženje su društva osoba, a dioničko društvo i društvo s ograničenom odgovornošću su društva kapitala.

Compare the UK and Croatian business organisations. Complete the table.

Sole trader	Trgovac pojedinac
Partnerships (associations of persons) 1. Ordinary (general) partnership 2. Limited liability partnerships	Trgovačka društva (društva osoba) 1. Javno trgovačko društvo 2. Komanditno društvo
Companies (associations of capital) 1. Public limited company 2. Private limited company	Trgovačko društvo (društva kapitala) 1. Dioničko društvo (d.d.) 2. Društvo s ograničenom odgovornošću

Part one: Setting up a business in the UK

	Type of entity/registration	Owner(s)	Control over the business/profit/management	Legal personality/liability	Taxation	Other features, examples
Sole trader	unincorporated business, HMRC, natural person	1 person	self-employed owner	not separate – legal existence = natural person	annual self-assessment tax return	the simplest and most common form of business ownership, hairdresser, photographer, computer consultant
General partnership	unincorporated business, HMRC, natural person	co-owners	co-owners	not separate	annual self-as. t.r., 2 types: income tax, VAT (value added tax)	partnership agreement/deeds of partnership; doctors, solicitors, dentists
Limited partnership (LP)	unincorporated business, HMRC, natural person	1 or more general partners + 1 or more limited partners; natural person	General p. manage the business (day-to-day basis) and make decisions v. limited p. prohibited from taking part in management	not separate (general p. – unlimited liability v. limited p. – limited liability)	annual partnership tax return, personal self-assessment t.r.	
Limited liability partnership (LLP)	hybrid legal form , legal person	individual partners + managers + sleeping partner	2 or more managers	Limited personal liability	VAT, self-assessment forms	registered with Companies House, partnership agreement

Private limited company (Ltd.) – d.o.o.	incorporated business, legal person	1 or more shareholders	Board of directors (upravni odbor), company secretary	Limited liability	VAT, corporation tax , directors (self-ass. t.r., income tax)	registered with CH
Public limited company (PLC) – d.d.	incorporated business, legal person	1 or more shareholders + general public can purchase shares	Board of directors, company secretary	Limited liability	VAT, corporation tax, directors (self-ass. t.r., income tax)	registered with CH

- **HMRC – Her Majesty’s Revenue&Customs**
- incorporated business – registrirano poduzeće
- incorporated company – registrirano trgovačko društvo, d.o.o.
- **sleeping partner (LLP)** – dormant or silent partner – pritajeni/tihi partner
 - contributes capital to the partnership, receives a share of the partnership profits, does not take part in management
- **limited companies – 2 main documents:**
 1. **articles of association** – prescribes regulations for the internal management of the company (shareholders’ AGM, the board of directors, corporate contracts and loans, the number and type of shares)
 2. **memorandum of association** – comprises information about the company and its **authorised capital** (odobreni kapital)
 - **AGM** – shareholders’ annual general meeting
 - **financial accounts** (profit-and-loss account and balance sheet)

Limited liability partnership

- **Partners in limited liability partnership:**
 1. **General partners** – manage the business → control day to day operations
 - Make decisions
 - Personally liable for the partnership’s debts (**unlimited liability**)
 2. **Limited liability partners** – not supposed to do anything → prohibited from taking part in management
 - **Limited liability** → only liable up to the amount they initially invested

Part two: A partnership agreement

- Read once again the paragraph 2, p. 179 and complete the important details of the agreement (**deeds of partnership = partnership agreement**)
 - Names of the individual partners
 - The purpose of partnership
 - The principal place of business
 - The amount of capital which is invested
 - The liability and **profit share** of each partner
 - The steps for the **dissolution**

Company formation

- Key documents in the 3 legal systems

Croatia	UK	USA
Osnivački ugovor	The memorandum of association	Articles /Certificate of incorporation

- Sets forth the **object** of the company
- Defines its **capital structure**
- Names the members of **the board of directors**
- Defines procedures for holding a vote of the shareholders, etc.

Types of limited companies

- **Limited company can be divided into:**
 1. **Private limited company** – features:
 - This type of company cannot offer its shares to the general public for sale
 - It is typically smaller than other companies and may have just one shareholder (**a single-member company**)
 - There is no minimum share capital requirement
 2. **Public limited company** – features:
 - The company can raise additional capital by issuing shares to general public on a stock exchange market
 - It must have at least 2 shareholders whose liability is limited to their contributions

Vocabulary

- to own / form / manage / run a business
- to have (un)limited liability
- to be liable for debts / obligations
- to be personally responsible for debts / losses
- to keep accounts
- to tax profits
- to pay income tax
- to contribute / utilize capital / skills / expertise
- to share responsibilities / profits
- to register for VAT
- to set up / dissolve a partnership
- to draw up a partnership agreement
- to register with Companies House
- to file self-assessment tax form
- to submit financial accounts
- to be liable for corporation tax (a company)
- to offer shares for sale
- to employ one or more persons
- to purchase large quantities of shares
- to require the minimum share capital

pg. 182.

- **Do the exercise V – complete the definitions.**

1. A **self-assessment form** is a form that a sole trader or a partner needs to complete and send to the tax authority. It contains all financial details and a calculation of the amount of tax that must be paid
 2. The amount of income that is paid in tax is called **income tax**.
 3. **Management** is the way in which a business is run a day-to-day basis.
 4. **Liability** is the condition of being actually or potentially subject to a legal obligation.
 5. Any property owned by a person or firm that has financial value is called **asset**.
 6. An **artificial person** is an entity other than natural person (human being) created by the law and recognized as a legal entity having distinct identity, legal personality and duties and rights (juristic, juridical or legal person)
 7. A **shareholder** is an individual or organisation that owns one or more shares in a company, and in whose name a share certificate is issued (**the US stockholder**)
 8. An individual or group that shares ownership with another individual or group is referred to as a **co-owner**.
 9. **Incorporation** is the process of legally declaring a corporate entity separate from its owners.
 10. **Corporation tax** is the amount of money payable on a company's income (e.g. from investment in shares) or gains (e.g. from sale of assets) at the statutory rate. It must be paid by a company (US corporation) based on the amount of profit the company has made.
 11. **Stock exchange** is an organized financial market where shares and other securities are brought and sold.
 12. A **business venture (poslovni poduhvat)** is a business entity developed with the intent to make financial profits.
 13. An offer or an attempt to take control of a company by buying enough of its shares is called **takeover bid (pokušaj preuzimanja trgovačkog društva)**.
- **Find the English terms for the following Croatian expressions**
 - a) pravna osoba = legal person
 - b) poslovni poduhvat / ulaganje = business venture
 - c) registracija trgovačkog društva = incorporation
 - d) porezna prijava = self-assessment tax return
 - e) odgovornost = liability
 - f) dioničar / suvlasnik = shareholder/co-owner
 - g) ponuda za preuzimanje trgovačkog društva = takeover bid

The USA

- Compare the US and Croatian business organisations

Sole proprietorship	Trgovac pojedinac
Partnerships (association of persons) 1. general partnership 2. limited partnership	Trgovačka društva (društvo osoba) 1. Javno trgovačko društvo 2. Komanditno društvo
Corporation* (association of capital) 1. C-corporation (larger b.) 2. S-corporation (smaller businesses, smaller taxes)	Trgovačko društvo (društva kapitala) 1. Dioničko društvo (d.d.) 2. Društva s ograničenom odgovornošću (d.o.o.)

- *Uniform Commercial Code (S-section / C-section)
- Zakon o trgovačkim društvima (ZTD)

S-corporations and C-corporations in the USA

- <https://www.legalzoom.com/articles/what-is-the-difference-between-s-corp-and-c-corp>

- Using the above link study the main differences between these two types of corporations.
- Make notes and pay attention to the terminological differences in the UK and USA!

Entity	Liability of owners	Capital	Management
Sole proprietorship	Unlimited personal liability	Capital is contributed by sole proprietor	Business is managed by sole proprietor
General partnership	Unlimited personal liability of partners	All partners contribute money or services and share profits and losses	All partners have equal management rights (unless they agree otherwise)
Limited partnership	Unlimited personal liability of general partner(s), no personal liability of limited partner(s)	All partners contribute money or services and share profits and losses	General partner(s) manage(s) the business
S corporation	Shareholders liable to the extent of their investment	Capital contributed by shareholders, usually no minimum share capital	Managing director or board of directors manage the business
C corporation	Liability limited to shareholder contributions	Share capital is raised through issuance of shares to the public	Business is managed by board of directors

Off-the-shelf company

- This is **a company** which has **already** been **registered** by an account or lawyer, and which is **ready for sale** to someone who wants to set up **a new company quickly**.
- **Find more information using the link:**
http://www.investorwords.com/10462/off_the_shelfcompany.html#ixzz53ipWH3e7

Pg. 183 – 184

- **Do the exercise VII**
 - a) A shelf company or off-the-shelf company is a company which has been legally **registered** with Companies House at an earlier date and is available for a **purchaser** who wants to bypass the lengthy registration or **incorporation** process. Although the majority of **investors** who intend to start limited **business entity** decide to set-up a brand new company, that is, one which does not exist until the time they choose to register it themselves, shelf companies might be very popular in specific situations. They are usually **drafted** and sold by accounting or law firms. Since they **incur** some additional costs, buying such companies is generally more expensive than registering a new entity. Making use of the benefits of pre-registered companies is a very simple process. On the market there is a large number of ready-made company names with suitably **certified** business documents ready for immediate **registration** in a purchaser's name. Each company is **formed** to have not been traded, and to have the ability to trade in any business area preferred. Before listing, all company names must be verified with Companies House, and must comply with governing legislation, i.e. the Companies Act(s).
 - b) **Answer the following questions:**
 - I. What can be avoided when choosing off-the-shelf company?
 - II. Who usually forms and sells such companies?
 - III. Which institution verifies company names.
- **REVISION:** Study once again the main features of business organisations in the UK and complete the table on the next slide.
- **Which business entities are these (in the UK)?**

Type	Liability of owners	Capital contributions	Management
Sole trader	Unlimited personal liability	By sole proprietor	Business managed by sole proprietor
Private limited company	Generally no personal liability of the members	No minimum share capital required. Capital can be raised through issuance of shares to members or through a guarantee	By managing director or the board of directors
Public limited company	No personal liability, liability limited to shareholder contributions	The minimum share capital of £50000 is raised through issuance of shares to the public and / or members	By the board of directors; shareholders have no power to participate in management
General partnership	Unlimited personal liability of general partners	Partner contribute money or services to partnership and share profits /losses	The partners have equal manage. rights, unless agreed otherwise
Limited partnership	Unlimited pers. liab. of general partners Limited partners generally have no pers. liab.	General and limited partners contribute money or services, to the limited partnership and share profits /losses	The general partner manages the business, subject to limitations of the Limited Partnership Agreement

- Make notes which will help you explain to an British / American business partner how Croatian Commercial Code (ZTD) defines the term: *Javno trgovačko društvo*
- **Pojam javnoga trgovačkoga društva – Članak 68**
 - Javno trgovačko društvo je trgovačko društvo u koje se udružuju dvije ili više osoba zbog trajnog obavljanja djelatnosti pod zajedničkom tvrtkom, a svaki član društva odgovara vjerovnicima društva neograničeno solidarno cijelom svojom imovinom.
 - Član društva može biti svaka fizička ili pravna osoba.

Unit 19 – Employment law

Part one: Legal regulation of employment

Sources of employment law in Britain

- a number of **relevant statutes** (e.g. Employment Act, 2008; Employment Relations Act, 2004; Equality Act, 2010, etc.)
- **case law** as the basis for determining employee status (e.g. full-time or part-time employment)
- **STATUTORY RIGHTS**
 1. Minimum wage, non-discrimination
 2. The right to equal pay for like work
 3. The right to working hours
 4. The right to sick and parental leave
 5. The right to be represented by a trade union

Employment contract

- **A contract of employment regulates relationship between employee and employer**
- Conclusion of the contract → rights + obligations for the parties
- HOWEVER, imbalance of bargaining power (employee = a weaker party) → a minimum statutory protection
- **Read the text, p. 192 and complete the list of written particulars / elements of the contract.**

- **Element of a contract of employment include:**
 - a) Names of **the contracting parties**
 - b) The date of **commencement of employment** (the first day of work)
 - c) **Remuneration** details (calculation method and payment intervals: monthly , weekly...)
 - d) **Working hours** (paying attention to overtime work)
 - e) **Holiday entitlement** (how many days, based on which criteria: age, children, education etc.)
 - f) Regulation of **sick leave and sick pay**
 - g) **Pension schemes**
- **It can also include...** duration of contract, notice period (very important!), place of work, job description

End of employment

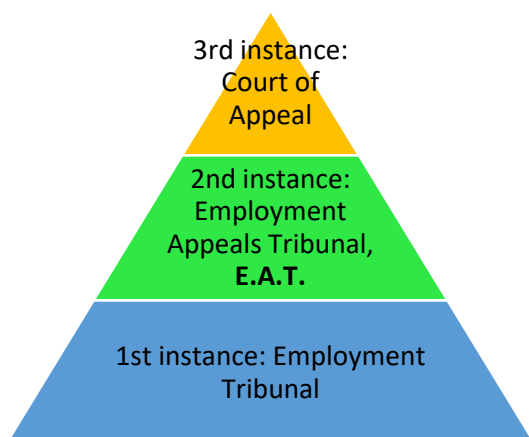
- **Reasons for termination of employment**
 - a) **By the employer**
 1. Expiration of a fixed-term contract (by mutual agreement)
 2. Being made redundant (redundancy payments)
 3. Gross misconduct – summary dismissal
 - b) **By an employee** – resignation in the agreed notice period
 - Unfair treatment/discrimination → a claim for **constructive dismissal**

Employment disputes

- **PROBLEMS in the employer – employee relationship**
 - a) informal amicable solution
 - b) Internal procedures laid down by the employer (disciplinary procedures, handling employee complaints)
 - c) Assistance by a third party, a mediator / an arbiter – ADR procedure (alternative dispute resolution procedure)
 - d) A lawsuit before a county court / an employment tribunal

An employment tribunal

- **3 MEMBERS**
 1. a chairperson (a barrister or a solicitor)
 2. the first lay person (representative of a relevant industry)
 3. the second lay person (experience in trade union activities)
- Tribunals less formal than regular courts, hierarchy:



Available legal remedies

- Read the text, p. 193 and complete the notes

1. Compensation
2. Reinstatement (returning to previous position)
3. Re-engagement (another position with the same employer)

- Explain the difference in the position of tribunals and county courts in awarding compensation.

Vocabulary

- poslodavac i posloprimac – employer and employee
- ugovor o radu – employment contract
- raskinuti ugovor o radu – to terminate employment contract
- kolektivan ugovor – collective agreement
- plaća, naknada za rad – wage, remuneration
- radno vrijeme – working hours
- bolovanje i rođiljni dopust – sick and parental leave
- pravo na godišnji odmor – holiday entitlement
- raskid radnog odnosa – termination of employment
- biti proglašen tehnološkim viškom – to be made redundant
- izvanredni otkaz – summary dismissal
- dati otkaz (od strane poslodavca) – dismissal
- dati otkaz (od strane posloprimca) – resignation
- (prizivni) sud za radne sporove – tribunal court
- vraćanje na radno mjesto (kao pravno sredstvo) – reinstatement or re-engagement
- sudskim putem dodijeliti odštetu – to award damages/compensation
- **Replace the underlined expressions with expressions from the text. pg. 192 – 193**
 - a) In case of a dispute, employees are represented by their labour associations. **TRADE UNION**
 - b) The law guarantees a minimum statutory pay.
 - c) Details of employment rights and obligations, including details concerning your pay are enclosed with your employment contract.
 - d) Employee complaints can be filed with the line manager. **GRIEVANCES**
 - e) The number of available days off is not negotiable. **HOLIDAY ENTITLEMENT**
 - f) The tribunal ordered that the claimant be returned to the position held before the lawsuit. **REINSTATED**
- **Translate the following sentences into English**
 - a) **Svaki zaposlenik ima pravo na bolovanje za vrijeme kojeg prima naknadu za bolovanje.**
 - Every employee has the right to sick leave during which he receives sick pay.
 - b) **Mark je zloupotrijebio povlaštene informacije koje je dobio od poslodavca te je dobio izvanredni otkaz zbog teške povrede radne obveze.**
 - Mark misused inside information he received from his employer and was summarily dismissed for a gross misconduct.
 - c) **Ugovorom je propisano radno vrijeme i otkazni rok koji ne odgovaraju zakonskim odredbama.**
 - The contract stipulates working hours and notice period that do not correspond to the legal provisions.
 - d) **Iako je imao ugovor na određeno vrijeme, Ian je dobio poslovno uvjetovani otkaz (kao tehnološki višak).**
 - Although he had a fixed-term contract, Ian was made redundant and got dismissed (as a technological surplus).

Redundancy	this refers to a situation where an employee has been laid off because the amount of workload no longer justifies his employment
Summary dismissal	this refers to the termination of employment by the employer available when an employee has committed gross misconduct

Unfair/wrongful dismissal	this is a lawsuit available to the employee if he believes that his dismissal was unlawful on account of the grounds for dismissal or because there was a breach of procedure in the termination of employment.
Constructive dismissal	this is a lawsuit available to the employee upon his own resignation – the employee has to prove that the employer was in breach of contract, which forced him to resign
Resignation	this refers to the situation where an employee initiates the termination of employment for his own reasons (e.g. to find better employment elsewhere)

Part two: Discrimination in the workplace

- **Read the text, p. 196 - 197 and do the following tasks:**
- Explain the term **discrimination** – treating a person or particular group of people differently, especially in a worse way from the way in which you treat other people, because of their race, gender, sexuality, etc.
 - In employment setting, it is unequal or unfair treatment
- **Name 6 types of prohibited conduct (direct and indirect discrimination, associative and perceptive discrimination, harassment and victimisation)**
 - a) explain each of them
 - b) translate into Croatian
 - c) think of examples/situations for each type

Direct discrimination	Maria is the only employee in her department who has not been promoted in the last 7 years despite her outstanding work record. All the other employees who have been promoted are men.
Indirect discrimination	A driver's licence is listed as a job requirement in the advertisement. The job description does not mention driving as an activity the incumbent is supposed to carry out as a part of the job.
Associative discrimination	Jane is denied the opportunity for advancement because she has a disabled son and her superiors are worried that she might not put her best foot forward in the new job considering that taking care of her son requires a lot of effort and time.
Perceptive discrimination	George is short and fair skinned, and looks much younger than his age. He is 35 but most people don't think of him a day over 25. When an opportunity arises for him to represent the company at a meeting with some high-ranking potential partners, his supervisor refuses to give him the task because he is worried he wouldn't be taken seriously.
Harassment	Adrian's wife is an immigrant from the Middle East. He works in a small company, employing a dozen employees. The colleagues in his office hardly ever speak to him, and he is never invited to join them for lunch breaks or after-work drinks. He is the only employee who was not invited to the company Christmas party
Victimisation	Ian has filed a grievance with his supervisor because he believes he is not given the same opportunities for advancement as his colleagues because he is gay. Ever since he filled the grievance his supervisor has been giving him overwhelming amounts of work to be completed by unreasonably tight deadlines.

Revision – probni ispit

1. Translate the following phrases into English.

- a) podnijeti zahtjev za konačno rješenje o razvodu braka – to petition for a decree absolute
- b) poslati poreznu prijavu (e.g. sole trader) – send a self-assessment tax return (e.g. sole trader)
- c) proglasiti zaposlenika tehnološkim viškom – declare an employee a technological surplus/redundant
- d) izuzeti počinitelja kaznenog djela od kaznene odgovornosti – to exempt the offender from criminal liability
- e) kleveta kao primjer građanskog delikta ima dva oblika – defamation as an example of civil delict has two forms

- f) nositi teret dokazivanja okrivljenikove krivnje – to carry a burden of proving the defendant's guilt
2. The type of partners who are personally liable for all the partnership's debts and manage the business are **ordinary/general** partners.
 3. Which of the following is not applicable for the termination of marriage?
 - a. a. divorce
 - b. annulment
 - c. death
 - d. **dissolution**
 4. Which of the following is a tort?
 - a. conspiracy
 - b. **battery**
 - c. robbery
 - d. burglary
 5. Which of the following offences belongs to the category of indictable only offences?
 - a. Theft
 - b. Common assault
 - c. **Conspiracy**
 - d. burglary
 6. The kind of tort affecting land which refers to a disturbance that is continuous and possibly results in damage is called **nuisance**.
 7. This refers to the situation when an employee initiates the termination of employment for his or her reasons, such a termination of employment is called **resignation**.
 8. A marriage between a 16-years old girl and a 20-years old man is **void** if the parents of the girl have not given their consent.
 9. Which element besides offer and consideration is necessary for an enforceable contract?
 - a. Delivery period
 - b. **Acceptance**
 - c. A third party
 - d. Force majeure
 10. Translate into Croatian only the phrases in BOLD within the following sentences.
 - a) **Indictable only offences** are the most serious offences **triable on indictment charge** which often leads to a lengthy term of imprisonment.
 - Teško kazneno djelo za koje se postupak vodi temeljem optužnice
 - b) A key factor in determining whether **a duty of care exists** is reasonable **foreseeability of harm** to persons who are closely affected by our **acts or omissions**.
 - dužna pažnja postoji, predvidljivost štete, radnja/činidba – propust/nečinjenje
 - c) The breach of a condition from a contract **entitles the injured party to terminate the contract and claim damages** as the primary remedy the law provides for breach of contract.
 - daje pravo/ovlaštenje oštećene strane da raskine ugovor i zatraži naknadu štete
 - d) **A marriage is voidable** if either party to the marriage did not validly consent to it, whether **in consequence of duress**, mistake, **unsoundness of mind** or otherwise.
 - brak je poništiv/pobojan , kao posljedica prisile, duševni poremećaj
 11. The main document required for **(formation – KRIVO)** of a company is called the articles of association. It regulates the internal management of the company.
 12. Collocations

to offer	
to terminate	the contract

to hear	a case
to accept	an offer
to provide	legal protection
to bring	a charge
to incur	losses
to harm	someone's reputation

- Libel, an offer, shares, bail

13. A contract clause which prohibits or permits the transfer of contractual rights and responsibilities to another party is called **assignment**

14. Ordinary partnership is a common business organisation formed when two or more individuals become **co-owners** of a business venture. This way more capital can be **contributed** and skills and expertise, as well as the **workload**, can be shared. The partners manage the **business** and personally share responsibilities and business's **profits**. Since a partnership is not considered to be a **separate** legal entity from its owners, partners are unlimitedly **liable** for all debts and obligations. The **registration** procedure is rather straightforward and requires registering the **name** of the business with HM Revenue & Customs. Each partner pays annually income tax on his / her **share** of the profits. Partnerships are usually set up drawing up partnership agreements.

- Co-owners, contributed, workload, business, profits, separate, liable, registration, name, share, invested, individual

15. Which of the defences for exemption from criminal liability is at stake, if the defendant is faced with a threat of death or serious personal injury (no defence to murder or attempted murder)?

- Involuntary intoxication
- Insane automatism
- Infancy
- duress**

16. The tort which does not involve unlawful contact with the body of the claimant is **assault**.

Module III: Branches of English law

Skripta – Marijana Javornik-Čubrić

Unit 14 – Criminal law

Part one: Crime, justice and the law

- Criminal law involves prosecution by the government of a person for an act that has been classified as a crime.
- It seeks to protect individuals and their property from harm, to regulate social conduct and to provide sanctions against those who break the rules by acting in a way which is harmful to the property or endangers the security and moral welfare of the individual.

Crime

- A crime occurs when someone breaks the law by an overt act, omission or neglect that can lead to a penalty, such as imprisonment or a fine
- Penalty is imposed by the state

Definitions of a crime

- An offence against the community punishable by the state
- An illegal act which may result in prosecution and punishment by the state if the accused is convicted

- An act against the law, generally committed with an intent to willfully and knowingly do something that is wrong

Basic elements of a crime

- The act of doing a criminal act (**actus reus** or guilty act)
- The intention to carry it out (**mens rea** or guilty mind)
- Usually there is intent to commit a crime, but a person can be held liable for breaking a law that he or she did not know existed ("ignorance of the law is no excuse")

Classification of criminal offences

1. **Indictable (notifiable) offences** – more serious offences triable on indictment (a written accusation of a crime) by a judge and a jury in a Crown Court
 - **they are divided into:**
 - a) **Treason** – the most serious crime against the state; defined as the offence of attempting by overt acts to overthrow the government of the state
 - b) **Arrestable offences** – offences for which the sentence is fixed by law; it can be imprisonment
 - c) **Other offences**
2. **Summary offences** – less serious offences triable summarily (expeditiously) in a Magistrates' Court by the justices without a jury
 - Less serious offences such as driving offences, common assault and criminal damage which has caused less than £5,000 worth of damage
 - The maximum sentence that can be imposed is six months imprisonment
3. **Triable either way** – cases which can be heard in either the Magistrates' Court or the Crown Court, such as theft or burglary
 - More serious offences such as theft, burglary etc.
 - Generally cases where the culpability is wide ranging and therefore sometimes they are minor and sometimes very serious offences
 - If the magistrates decide their sentencing powers are sufficient to deal with the offence, the accused may elect to have it dealt with summarily in the magistrates' court or on indictment (trial by jury) in the Crown Court

Categories of criminal offences

1. **Offences against the State and public peace and order** (treason, sedition, unlawful assembly, riot, conspiracy, perjury, incitement to racial hatred etc.)
2. **Offences against the person** (murder, manslaughter, infanticide, assault, rape, sexual offences, bigamy etc.)
3. **Offences against the property** (theft, robbery, burglary, fraud, blackmail, forgery, malicious damage, handling stolen goods etc.)

Summary only offences	Triable either way offences (kazneno djelo za koje se postupak može voditi na oba načina – sumarno I pred porotom)	Indictable only offences (teško kazneno djelo) Triable on indictment – kaz. djelo za koje se postupak void temeljem optužnice
• driving offences • common assault • criminal damage (caused less than 5.000 £ worth of damage)	• theft • burglary • assault causing bodily harm • wounding without intent	• rape • murder • manslaughter • robbery • conspiracy

	obtaining property by deception	
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Conviction

- The prosecution must prove beyond reasonable doubt that the accused committed a guilty act with a guilty intent
- If the accused person lacks the mental capacity to form a criminal intent, he or she cannot be held responsible for the action

Exemptions from criminal liability

1. Persons subject to special rules

- minors under ten years of age
- foreign sovereigns
- diplomats

2. Persons deprived of their free will and self-control

a) insanity

- A deranged state of mind
- A person is presumed to be sane and reasonable, unless it is shown that:
 - the person suffers from disease of the mind
 - the person did not know the nature and quality of the act he was doing

b) coercion

- Being forced to do something – being under duress
- The duress must have been an order to do something specific

c) necessity

- an act done to prevent a greater evil
- the evil must have been directed to the defendant or someone for who he is responsible
- the act must have been a proportionate response
 - Self defence (reasonable, not excessive force)

Criminal prosecution

- The state *prosecutes* those charged with a crime. The police investigate a crime and may apprehend suspects and detain them in custody.
- If the police decide an offender should be prosecuted, a file on the case is sent to **CPS – Crown Prosecution Service**
- The CPS must consider whether there is enough evidence for **a realistic prospect of conviction**
- The choice of the court depends on the category of crime involved

Criminal proceedings

- Criminal proceedings can be initiated either by serving of **a summons** setting out the offence and requiring the accused to attend court, or, in more serious cases, by **a warrant of arrest** issued by a Magistrates' Court
- Criminal proceedings begin in the Magistrates' court; a defendant can either be detained until trial or released on bail with a condition of attendance on a specified day
- In case of an indictable offence, the defendant will be committed to the Crown Court for trial

Adversarial system of justice

- The English system of justice is *adversarial* – each side (both prosecution and defence) collects and presents their own evidence and attacks their opponent's by cross-examination
- In a criminal trial, *the burden of proof* is on the prosecution to prove beyond reasonable doubt that the accused is guilty

Bail

- A person accused or under arrest may be granted bail and temporarily released
- Bail may be refused, for example if there are grounds for believing that the accused would fail to appear for trial or commit an offence

Disclosure

- Prior to the trial, there is a statutory requirement for *disclosure* by the prosecution and defence of material relevant to the case, for example details of any *alibis* or *witnesses*

Verdict

- If, at the end of the trial, the court's verdict is not guilty, the defendant is *acquitted*
- If the court's verdict is guilty, the court issues a *sentence*
- Sentences include imprisonment, fines and community sentence
- The duty of the court is to have regard to any *aggravating or mitigating circumstances*

Complete the definitions

1. **A warrant of arrest** = a court document authorising the police to detain someone
2. **An indictment** = a written statement with details of the crimes someone is charged with
3. **A summons** = a formal order to attend court

Complete the following statements:

- A crime is an offence committed against **community**.
- The three different categories of criminal offences in England and Wales are: **summary, indictable** and **triable either way**.
- The choice of the court at which a particular criminal offence will be heard will depend on _____.

Vocabulary I

- prosecution – pokretanje kaznenog postupka
- indictable offence – teže kazneno djelo
- summary offence – lakše kazneno djelo
- **actus reus** – objektivni element kaznenog djela
- **mens rea** – subjektivni element kaznenog djela, kažnjiva namjera
- treason – izdaja
- probable cause – osnovana sumnja
- **perjury** – krivokletstvo
- **conspiracy** – urota
- **theft** – krađa
- **robbery** – pljačka
- **burglary** – provalna krađa
- **fraud** – prijevara
- **blackmail** – ucjena
- **forgery** – krivotvorenje

- culpability – krivnja
- beyond reasonable doubt – izvan svake sumnje
- coercion – prisila, prinuda
- custody – pritvor
- summons – sudski poziv, pozivanje pred sud
- warrant of arrest – nalog za uhićenje
- adversarial proceeding – akuzatorni postupak
- burden of proof – teret dokazivanja krivnje
- bail – jamčevina
- **disclosure – iznošenje dokaza**
- verdict – presuda

Translate the following

- Nalog za uhićenje nužan je kako bi se uhitilo osumnjičenu osobu. No policija može izvršiti uhićenje i bez naloga kad postoji osnovana sumnja da je osoba počinila kazneno djelo, kao na primjer ako se osoba nalazi blizu mjesta zločina. Nalog je nužan ako je osoba udaljena od mjesta zločina.
- A warrant of arrest is necessary to make an arrest. However, the police can make an arrest without a warrant when there is probable cause to believe a person committed the crime, such as if the person is found near the crime scene. A warrant is needed to arrest someone at a distance from the crime scene.

Homework

- Read the text Crime, Justice and the Law (pp. 130-32) and make a list of other unfamiliar words or phrases
- Complete Exercise V (p. 132)

Revision

1. What is criminal law concerned with?
2. What is a crime?
3. What are basic elements of every crime?
4. How are offences classified under English law?
5. Which courts try which offences?
6. **Who is who in criminal court? Who does what in the court of law? Explain, find the Croatian equivalents and match the persons involved in a criminal trial with their activities.**

Person	Explanation	Translation
juror	passes a verdict of guilty or not guilty	
defence counsel	represents clients and provides them with legal advice	
judge or magistrate	presides over court and pronounces sentence based on the evidence presented by either side	sudac
expert witness	presents his/her expert opinion without having been a witness to any occurrence relating to the lawsuit or criminal case	sudski vještak
defendant	pleads guilty or not guilty	optuženik
prosecutor	brings a prosecution and outlines the facts of the case	tužitelj

7. Read the paragraph *Defining a crime* and complete the following paragraph:

- Criminal law involves _____ by the government of a person for an act that has been classified as a crime. It seeks to protect _____ and their property from harm, to regulate social _____ and

to provide _____ against those who break those rules by acting in a way which is harmful to the property or endangers _____ and the moral welfare of the individual.

a) **Think of possible synonyms to use in the sentences above!**

b) **Translate the paragraph!**

8. Translate the following paragraph:

- Where the defendant pleads “not guilty” to an offence, the prosecution will bear the legal burden of proving the defendant's guilt beyond reasonable doubt. Until the point of conviction a criminal defendant is presumed to be innocent, and is given the opportunity to present a defence.

9. Match the crime with its definition:

arson	intentional destruction of property by fire
conspiracy	agreement between two or more persons to commit a crime
assault	intentional act that causes someone to be in fear of physical harm
manslaughter	killing of a person without any deliberation
burglary	unlawful entry into a building for the purposes of committing a crime
robbery	taking property of another without consent
theft	the action of taking property unlawfully from a person or place by force or threat of force
assault causing bodily harm	physical violence that causes injury to another

10. Read the paragraph about criminal procedure and translate the following phrases:

- to apprehend suspects –
- to detain in custody –
- to charge with a criminal offence –
- to release on bail –
- to plead guilty –
- to commit for sentencing –
- to issue a warrant for arrest –
- Do Exercises VI and VII (p. 133)!

11. Read the paragraph about sentencing and answer the following questions:

- Which law (Act) regulates sentencing?
- Which are purposes of sentencing?
- What is a key criterion for passing sentence?
- Which sentences can be imposed by criminal courts?

12. How do you understand the following terms? What do they refer to in the context of the criminal justice system? Translate them into Croatian.

- to bear the legal burden of proof = **imati/snositi teret dokazivanja (krivnje)**
- presumed to be innocent = **smatrati se nevinim**
- to hold a person liable for breaking the law = **smatrati osobu odgovornom za kršenje zakona**
- ignorance of the law is no excuse = **nepoznavanje zakona nije izlika**
- to persuade the judge or jury beyond reasonable doubt = **uvjeriti suca ili porotu izvan svake sumnje**
- to prove beyond reasonable doubt = **nepobitno dokazati; dokazati izvan svake sumnje**
- adversarial system – **akuzatorni sustav**
- system of justice = **pravosuđe**
- impartial judge or jury = **nepristrani sudac ili porota**

13. Match each verb with a noun and find the Croatian equivalents.

- to violate *the law* = **kršiti zakon**
- to issue *warrant for arrest* = **izdati uhidbeni nalog**

- to grant *bail* = **odobriti plaćanje jamčevine**
- to detain *in custody* = **zadržati u pritvoru**
- to breach *the law / a rule* = **(pre)kršiti zakon / pravilo**
- to plead “(not) guilty” = **izjaviti da se osjeća nevinim / priznati krivnju**
- to impose *a sentence* = **izreći /odrediti kaznu**
- to bring *a charge/a prosecution* = **podnijeti tužbu / pokrenuti kazneni postupak**
- to commit *a criminal offence* = **počiniti kazneno djelo**
- to break *the law / a rule* = **(pre)kršiti zakon / pravilo**

14. Translate the following legal terms:

- INDICTABLE OFFENCE – teško kazneno djelo
- SUMMARY OFFENCE – lakše kazneno djelo
- CULPABILITY – krivnja
- TO GRANT BAIL – odobriti jamčevinu, odobriti puštanje uz jamčevinu
- REALISTIC PROSPECT OF CONVICTION – realne šanse za osudu
- TO DETAIN A SUSPECT IN CUSTODY – zadržati osumnjičenika u pritvoru
- WARRANT OF ARREST – nalog za uhićenje
- TO BE CHARGED WITH A CRIMINAL OFFENCE – biti optužen za kazneno djelo

15. Complete the following:

- Criminal law deals with behaviour for which the state reserves punishment, for example murder. The state prosecutes the offender. Civil law concerns relationships between private persons, their rights and duties. It is also concerned with conduct which may give rise to a claim by a legal person for compensation.

16. Insert the missing c-words:

- The state prosecutes those charged with a crime and may apprehend suspects and detain them in custody. If the police decide that an offender should be prosecuted, a file on the case is sent to the Crown Prosecuting Service (CPS)

Basic intent and specific intent

- What is exemption from criminal liability?
- Who can be exempt from criminal liability?
- Read the explanation on p. 134 and do Exercise IX!
- **Translate the following Articles from the Croatian Criminal Law Act into English:**

➤ **Članak 8**

- Kazneni postupak za kaznena djela pokreće Državno odvjetništvo u interesu Republike Hrvatske i svih njezinih građana.
- Iznimno za određena kaznena djela može se zakonom propisati da se kazneni postupak pokreće privatnom tužbom ili da Državno odvjetništvo pokreće kazneni postupak povodom prijedloga.
- **Državno odvjetništvo – State Attorney’s Office**
- **privatna tužba – private charge**
- **prijedlog – motion**

➤ **Article 8**

- Criminal proceedings for criminal offences shall be instituted by the State Attorney’s Office on their own motion in the interest of the Republic of Croatia and all its citizens.
- Exceptionally, for certain criminal offences, it may be prescribed by statute that criminal proceedings shall be instituted by a private charge, or that the State Attorney’s office shall institute criminal proceedings following a motion.

- **Translate Article 10 into English:**

- Kazneno se zakonodavstvo ne primjenjuje prema djetetu koje u vrijeme kad je počinilo kazneno djelo nije navršilo četrnaest godina života.

- Criminal legislation shall not be applied to a child who, at the time of committing a criminal offence, had not reached (attained) fourteen years of age.
- *Discuss the difference between Croatian and English criminal law with regard to young offenders!*
- **Translate the following:**
 - a) **Članak 25. = Article 23**
 - (1) Kazneno djelo može se počiniti djelom ili propustom (nečinjenjem).
 - A criminal offence may be committed by an act or an omission to act.
 - b) **Types of Criminal Sanctions = Vrste kaznenopravnih sankcija**
 - **Article 5 = Članak 5**
 - Criminal sanctions which may be prescribed by statute and applied against the offender are: punishments, non-custodial sanctions, security measures and educational measures.
 - The duration of any type of criminal sanction shall be determined by statute and no criminal sanction shall be prescribed, pronounced or applied for an indefinite time.
 - (1) Kaznenopravne sankcije koje se mogu propisati zakonom i primijeniti prema počinitelju kaznenog djela jesu: kazne, mjere upozorenja, sigurnosne mjere i odgojne mjere.
 - (2) Za svaku vrstu kaznenopravnih sankcija zakonom se određuje njihovo trajanje i nijedna se kaznenopravna sankcija ne može propisati ni izreći ili primijeniti na neodređeno vrijeme.
 -

Part two: Diminished responsibility

- How does murder differ from manslaughter?
- Which are grounds for exemption from criminal liability?
- Is diminished responsibility one of them?
- How would you define diminished responsibility?

Murder and manslaughter

- **Murder** – the legally unjustified killing of one person by another; the crime of unlawfully killing a person, especially with malice aforethought.
- **Manslaughter** – the unlawful killing of another person without premeditation or so-called "malice aforethought" (an evil intent prior to the killing).

Diminished responsibility

- Diminished responsibility is one of three special defences which exist solely for the offence of murder. It is contained in the Homicide Act 1957 as modified by the Coroners and Justice Act 2009. Where the defence of diminished responsibility is successfully pleaded, it has the effect of **reducing a murder conviction to manslaughter**.

Translate the following paragraph:

- The three special defences of *diminished responsibility*, *loss of control* and *suicide pact* differ from general defences in that they do not apply to all crimes and also the effect is to reduce criminal liability rather than to absolve the defendant from liability completely.
- **A suicide pact** is an agreed plan between two or more individuals to commit suicide.

From the s.2 of the Homicide Act 1957 as amended by s.52 the Coroners and Justice Act 2009.

- Persons suffering from diminished responsibility...
(1) A person ("D") who kills or is a party to the killing of another is not to be convicted of murder if D was suffering from an abnormality of mental functioning which—

- a) arose from a recognized medical condition,
- b) substantially impaired D's ability to do one or more of the things **mentioned in subsection (1A)**, and
- c) provides an explanation for D's acts and omissions in doing or being a party to the killing.

(1A) Those things are—

- a) to understand the nature of D's conduct
- b) to form a rational judgment
- c) to exercise self-control.

- <http://www.legislation.gov.uk/ukpga/Eliz2/5-6/11/section/2>

Answer the following questions

1. In what way is diminished responsibility different from other defences in criminal law?
2. **Which act regulates it?**
3. Which elements must be proven by the defence (on the balance of probabilities) before the defence of diminished responsibility can be established?

Case study

- **R v Dietschmann [2003] 1 AC 1209**
- **The facts (from the judgement of the House of Lords):**
- In the early hours of the morning on 18 July 1999 the appellant, Anthony Dietschmann, killed Nicholas Davies by punching him and kicking him on the head in a savage attack. At the time of the killing, the appellant was heavily intoxicated, and he was also suffering from a mental abnormality which the **medical witnesses** for the Crown and the defence described as an adjustment disorder, which was a depressed grief reaction to the death of his aunt, Sarah, with whom he had had a close emotional and physical relationship.
- **Held:** His conviction for murder was substituted for a manslaughter conviction.
- **Key principle:** According to Section 2(1) the abnormality of the mind does not have to be the only cause of the defendant's acts. Where it may have been caused by various factors the jury should consider diminished responsibility by reference only to factors falling within Section 2.
- **Commentary**
 - After clarifying the fact that diminished responsibility is not a medical diagnosis, but a legal concept which only a jury can decide (after hearing doctors' opinions), the judge gave the following **directions to the jury** concerning the existence of an abnormality of the mind in addition to intoxicants:
 - "Assuming that the defence have established that the defendant was suffering from mental abnormality as described in section 2, **the important question is:** did that abnormality substantially impair his mental responsibility for his acts in doing the killing?
 - **Drink cannot be taken into account** as something which contributed to his mental abnormality and to any impairment of mental responsibility arising from that abnormality. But you may take the view that both the defendant's mental abnormality and drink played a part in impairing his mental responsibility for the killing and that he might not have killed if he had not taken a drink. If you take that view, then **the question** for you to decide is this: has the defendant satisfied you that, despite the drink, his mental abnormality substantially impaired his mental responsibility for his fatal acts, or has he failed to satisfy you of that? If he has satisfied you of that, you will find him not guilty of murder, but you may find him guilty of manslaughter. If he has not satisfied you of that, the defence of diminished responsibility is not available to him."
 - **How could these suggestions to the jury be simplified?**

Find in the above texts the equivalents for the following expressions.

1. to free from guilt or blame or their consequences = **absolve the defendant from liability**

2. to convict of manslaughter instead of murder = **to substitute a murder conviction for a manslaughter conviction**
3. to make or cause mental responsibility become worse = **to impair mental responsibility**
4. to assert as defence in court that at the time of the commission of the criminal act your mental responsibility was diminished = **to satisfy the court that the defence of diminished responsibility is available**

Translate into English

- Neubrojiva je osoba koja u vrijeme ostvarenja protupravnog djela nije mogla shvatiti značenje svojeg postupanja ili nije mogla vladati svojom voljom zbog duševne bolesti, privremene duševne poremećenosti, nedovoljnog duševnog razvitka ili neke druge teže duševne smetnje.
- A mentally incapable person is the one who, at the time of committing an illegal act, was incapable of understanding the significance of his conduct, or could not control his will due to mental illness, temporary mental disorder, mental deficiency or some other severe mental disturbance.
- **NGRI – what does it stand for?**

Translate into Croatian

- To a perpetrator who at the time of the commission of a criminal offence is of a substantially diminished responsibility, the punishment may be mitigated if the substantially diminished responsibility was not voluntarily induced.
- Počinitelju koji je u vrijeme počinjenja kaznenog djela bio smanjeno ubrojav kazna može biti blaža ako do smanjene ubrojavosti nije došlo samoskrivljeno.

Watch the video and complete the following text

- <https://www.youtube.com/watch?v=qOnaqeVN20g>
- Unlike **insanity**, diminished capacity is not a complete defense to a crime. A plea of diminished capacity means you committed the crime, but you did not have the mental capacity to reach the **intent** element of the crime. Additionally, a plea of diminished capacity usually results in a lesser conviction, not an **acquittal** or not guilty verdict. Diminished capacity can be caused by a mental condition, disease, trauma, or intoxication. For example, if Joe gets drunk and pulls out his knife and stabs someone at the bar, he might be found guilty of **manslaughter** instead of murder. Joe could argue as a result of his drunken state, he could not form the intent necessary to commit a **premeditated** murder.

Vocabulary II

- diminished responsibility – smanjena ubrojavost
- homicide – ubojstvo
- manslaughter – ubojstvo iz nehaja, ubojstvo na mah
- appellant – podnositelj žalbe/priziva
- impairment – poremećaj
- **mental disturbance** – duševna smetnja
- **coroner** – istražni sudac; mrtvozornik
- **to absolve from liability** – osloboditi od odgovornosti
- **mitigating circumstances** – olakotne okolnosti
- **aggravating circumstances** – otegotne okolnosti
- **perpetrator** – počinitelj (kaznenog djela)

Unit 15 – The law of torts

Part one: Torts against land and the person

English Civil law

- Two most important subcategories:
- The law of contract
- The law of torts
- The Law of Torts is an area of civil or private law.
- *What is public law and what is private law?*
- *Which areas of private law can you think of?*
- Torts involve situations where damage (injury) was caused or wrong committed as a result of unreasonable conduct, unrelated to a contract.
- damages - money paid as compensation for an injury or wrong
- **damage – šteta**
- **damages – odšteta**

Torts

- Tort – a Norman-French word which means a wrong
- In English law: a civil wrong; a wrong committed by one citizen against another not serious enough to amount to the breaking of the criminal law
- Less serious wrongs not punished by the state
- ***tort – građanski delikt***

Tortious conduct

- Tortious conduct is usually perceived not to be sufficiently serious to constitute a crime.
- No criminal liability, just civil liability
- *tortious conduct (behaviour) - štetno ponašanje*
- ***criminal liability – kaznena odgovornost***

The law of torts

- The law of torts is concerned with ways to compensate for the damage suffered and deter from further harmful activity.
- Legal remedies (outcomes): damages and injunction
- ***injunction – sudski nalog ili zabrana***

What is Law of Torts?

- <https://www.youtube.com/watch?v=jQ6smN3lcnY>
- Discuss the following:
- Civil v. criminal case
- Liable v. guilty
- Preponderance of evidence v. beyond reasonable doubt
- Preponderance: „more likely than not” accurate

Parties

- The offender (the persons who commits a wrong to another) is called a TORTFEASOR
- The **injured party** is called a **CLAIMANT**
- Action is taken by the injured party against the tortfeasor

Wrongful behaviour

- The major difference between the law of contract and the law of tort is that with respect to the law of tort, the law has fixed what kind of behaviour is wrongful (tortious behaviour)
- With respect to the law of contract, the contractual agreement between the parties lays down what will be seen as wrongful behaviour

Compensation of damages

- The claimant (formerly plaintiff) may recover damages for their injury (physical or mental) and loss
- Special damages: losses that can be precisely quantified in monetary terms
- General damages – losses that cannot be exactly defined in monetary terms (the actual pain suffered, expected future losses)
- Where the claimant's general or special damages are negligible, the court may award nominal damages

Types of torts

1. **Negligence**
2. **Torts affecting land**
 - Trespass
 - Nuisance
3. **Torts affecting civil liberties**
 - Assault and battery
 - False imprisonment
 - Defamation (libel and slander)

Negligence

- A failure to apply reasonable care in order to avoid foreseeable injuries to others
- The duty to avoid being negligent is defined in terms of ordinary care
- Ordinary care generally means the degree of care that would be used by a reasonable person under the same or similar circumstances
- Professional and personal negligence

Law of negligence

- The modern law of negligence was established in *Donoghue v Stevenson* [1932] AC 562. In order to be successful in a negligence claim, the claimant must prove:
 1. the defendant owed them a duty of care
 2. the defendant was in breach of that duty
 3. the breach of duty caused damage and
 4. the damage was not too remote.

A case study

- <https://www.youtube.com/watch?v=WgEYzgrNvy0>
 1. What was the case?
 2. Why is it important?
 3. Who owes us duty of care (i.e. who is my neighbour?)

Donoghue v Stevenson [1932] AC 562 House of Lords

- Mrs Donoghue went to a cafe with a friend. The friend brought her a bottle of ginger beer and an ice cream. The ginger beer came in an opaque bottle so that the contents could not be seen. Mrs Donoghue poured half the contents of the bottle over her ice cream and also drank some from the bottle. After eating part of the ice

cream, she then poured the remaining contents of the bottle over the ice cream and a decomposed snail emerged from the bottle. Mrs Donoghue suffered personal injury as a result. She commenced a claim against the manufacturer of the ginger beer.

Importance

- Her claim was successful. This case established the modern law of negligence and established the neighbour test.

Who is my neighbour?

- "The rule that you are to love your neighbour becomes in law you must not injure your neighbour; and the lawyer's question "Who is my neighbour?" receives a restricted reply. You must take reasonable care to avoid acts or omissions which you can reasonably foresee would be likely to injure your neighbour. Who then in law is my neighbour? The answer seems to be persons who are so closely and directly affected by my act that I ought reasonably to have them in contemplation as being so affected when I am directing my mind to the acts or omissions which are called in question."
- Lord Atkin

Nuisance

- An unreasonable interference with another person's use or enjoyment of property
- The injured party may sue for an injunction or damages, or both
- **Interference must be continuous**
 - a) **Public nuisance** – affects many people or the whole community
 - b) **Private nuisance** – interferes with the individual's enjoyment or use of property
 - c) **Mixed nuisance** – both public and private

Trespass

- An unlawful entry to another person's property
- Any unauthorized intrusion or invasion of private premises or the land of another
- **Continuous trespass** – continued presence on the land of another (injunction)

Torts affecting civil liberties

- **Battery** – unlawful contact with the body of the claimant
- **Assault** – intentional and direct causing of apprehension
- **False imprisonment** – unlawful deprivation of another person's freedom of movement

Defamation

- **Oral (slander) or written (libel)** injury of somebody's reputation
- An intentional false communication that injures another person's good name
- The claimant must prove that the defamatory statement was made with malice (knowing it was false or with a reckless disregard as to whether it was true or false)

Libel and slander

- **There are 2 types: libel (made in a permanent form) and slander (made in a transitory form)**
- **Remedies: injunction and damages**
- Injunctions are used to prevent the publication or broadcast of defamatory statements
- Discuss the following video clip:

- <https://www.youtube.com/watch?v=wbXfG5uJKTE>

Truth

- Read the defence of 'Truth' and answer the questions on p. 148-9

Contract and tort

- **Translate the following sentence:**
- Contract and tort are related to one another: a trader who sells dangerous goods can be sued in negligence for injuries so caused and may also be held liable for a breach of a contractual duty to see that his goods are of merchantable quality.

Tasks

1. Complete the definitions below:

- a) **NUISANCE** – indirect injuries to a person's property or his enjoyment of property.
- b) **NEGLIGENCE** – injurious breach of a legal duty of care owed to the plaintiff.
- c) **DEFAMATION** – the act of attacking the reputation of some persons.
- d) **TRESPASS** – direct interference with the personal goods or land of another.

Part two: Defamation and freedom of expression

Part three: Negligence

Negligence – definition

- Failure to apply reasonable care in order to avoid foreseeable injuries to others
- The law requires that we act reasonably toward other people and their property
- "The rule that you are to love your neighbour becomes in law, you must not injure your neighbour. You must take reasonable care to avoid acts or omissions which you can reasonably foresee would be likely to injure your neighbour." (Donoghue v. Stevenson, 1932)

The reasonable person

- The standard that we must meet is that of the reasonable person in the same or similar circumstances
- The judges invented the notion of the reasonable man – a meticulously careful person or a perfect person
- "Negligence is the omission to do something which a reasonable man, guided upon those considerations which ordinarily regulate the conduct of human affairs, would do, or doing something which a prudent and reasonable man would not do. The defendants might have been liable for negligence, if, unintentionally, they omitted to do that which a reasonable person would have done, or did that which a person taking reasonable precautions would not have done." (Blyth v. Birmingham Water Works, 1856)

The Law of Torts

- The Law of Torts (Tort Law) sets standards for our behaviour and provides remedies if we do not meet these standards
- It imposes on each member of society the duty to take reasonable care to avoid causing harm to others

The Law of Negligence

- It decides whether the tortfeasor was negligent in his or her behaviour
- If the court finds the tortfeasor negligent, he or she may be ordered to compensate the injured party
- The injured party (claimant) must show that the tortfeasor did not meet the standard of care owed to him or her and that the injury resulted from that failure

Failure to use ordinary care

- Negligence is an allegation or accusation of failure to use ordinary care
- Failure to use ordinary care can also occur by omission, or failing to do something that a reasonable person would have done
- Negligence is therefore a judgment of both acts and omissions

Components of a negligence cause of action

- When considering a negligence cause of action, there are six primary elements to be considered:
 1. **Duty**
 - The duty element is the legal requirement that the person being sued for negligence must adhere to a standard of conduct in protecting others from unreasonable risk of harm
 - **Types of duties: parental, personal, professional**
 2. **Breach of duty**
 - Would a reasonable person in a similar situation have done the same thing as the person being sued?
 - The objective (hypothetical) and subjective (actual) standard of breach of duty
 3. **Causation**
 - Actual cause: was the person being sued the actual cause of injuries sustained by the plaintiff?
 - Proximate cause: were the injuries sustained foreseeable or too remotely connected to the incident?
 4. **Damage**
 - Claimants must have suffered damage from the negligent act
 - Physical damage
 - Economic damage or
 - both
 5. **Remoteness**
 - Only reasonably foreseeable damage may be recovered by an action in negligence
 - It must have been reasonably foreseeable that damage of the same kind as the claimant suffered would ensue from it (legal cause of the action)
 6. **Defences**
 - The tortfeasor may have a complete or partial defence to the tort
 - A common complete defence is where the tortfeasor proves that the claimant consented either expressly or implicitly to the risk of damage, or where the tortfeasor proves that the claimant acted negligently

Damages

- The court decides the amount of damages to be awarded
 - a) **Special damages** (precisely quantified)
 - b) **General damages** (not quantified precisely: pain and suffering, future losses...)
 - c) **Punitive damages** (where the tortfeasor intentionally committed the tort for economic gain)
 - d) **Nominal damages (negligible damage)**

Case Study – Liebeck v. McDonald's

- Stella Liebeck (79) bought a cup of coffee for 49 cents at the drive-through window of a McDonald's in Albuquerque, New Mexico
- She placed the cup between her legs to remove the lid to add cream and sugar and spilled the coffee, burning herself

Injuries

- Ms. Liebeck's injuries were severe. She suffered full thickness burns (third-degree burns) and scalding to her inner thighs, groin and buttocks. She was in the hospital for eight days and had to undergo extremely painful procedures to remove layers of dead skin, as well as several graft operations.

The coffee

- The McDonald's coffee was served at a temperature of between 180 and 190 degrees Fahrenheit (82-88 °C)
- For home use, coffee is generally brewed at 135 to 140 degrees. If spilled on skin, any beverage heated to between 180 and 190 degrees will cause third-degree burns in two to seven seconds.

The action

- Ms. Liebeck's original intention was to obtain legal help in order to be reimbursed for her medical expenses, which were said to have totalled nearly \$20,000. However, McDonald's refused to pay her medical bills. This led Ms. Liebeck to file a product-liability suit.

Allegation

- Liebeck sued McDonald's, alleging that the coffee was too hot

Decision

- The jury awarded her \$160,000 to compensate her for her injuries and \$2.7 million to punish McDonald's

Advocates of tort reform

- They claim this is a clear case of lawsuit abuse: everyone knows that coffee is hot and if you spill it, you can burn yourself
- No one is willing to accept the consequences of everyday accidents – judges and juries have allowed plaintiffs to pass their misfortune on to someone with a deep pocket

Defenders of tort law

- They see Liebeck's case as the evidence of how well the tort system works
- McDonald's had received over 700 complaints about the temperature of the coffee (20 degrees hotter than competitors)
- Liebeck was in hospital for a week with third-degree burns requiring skin grafts

Jury's reasoning in the case

- \$2,7 million was the amount that McDonald's made from two days of coffee sales – the punitive damage award
- Liebeck was partially responsible for her injuries because she was not careful, so it reduced the damages awarded to her accordingly

The judge's decision

- The trial judge further reduced the punitive damages to \$480,000

The result

- After this case, McDonald's reduced the temperature of its coffee
- A wrongdoer was forced to compensate an injured victim and to remedy its dangerous conduct
- <https://www.youtube.com/watch?v=pCkL9UImCOE>

Vocabulary

1. Fill in the blanks with appropriate words from the list: *duty, damage, care, liability, conduct, breach, liable, intention*
 - Negligence which harms another unjustifiably is not only a tort in itself, it is also a condition of **liability** for tort. From this point of view it is, like **intention**, a mental state. One may say that it is a failure to use proper **care** in one's conduct. Negligence will in general involve liability for **damage** caused by it; but before we can say that there has been negligence of which the law will take account, one must make sure that there is a legally recognized **duty** to take care.
 - The House of Lords held in 1969 that a barrister or solicitor normally owes his client a duty of care, any **breach** of which will render him **liable** to his client, except where he is acting as an advocate, when he will not be liable for negligence in his **conduct** of a case.
2. vsfdf

Unit 16 – Contract law

- A body of rules which regulate the formation of contracts so that contracts properly formed will be binding on the parties involved, and the courts will be able to enforce them.
- It considers questions as whether a contract exists, what the meaning of it is, whether a contract has been breached, and what compensation is due to the injured party.

Part one: Contracts

- A legally binding agreement between two or more parties which the court will enforce
- **Agreement** – an exchange of promises; not every agreement is a contract
- Definition – a contract is an agreement with specific terms between two or more parties in which there is a promise to do something in return for a certain benefit.
 - It is a **legally enforceable agreement** – the agreement that generates rights and obligations that may be enforced in the courts
 - term – odredba ugovora

Contract and agreement

- The law does two things in transforming an agreement into an enforceable contract:
 1. It determines whether the contract meets all the requirements of the law
 2. The law, and not the contracting parties, has the final say on whether there is a contractual obligation and what the scope of the obligation is

Express and implied terms

- Express terms: what the parties said or wrote
- Implied terms: terms that have not been agreed by the parties, but the law makes them part of the contract anyway

Conditions and warranties

- essential terms of contract are called **conditions**
- **warranties** – minor stipulations of a contract e.g. parties, charges, term of contract, termination, confidentiality, indemnity, force majeure, applicable law etc.

Requirements for a valid contract

1. The parties must possess **legal capacity** to enter contract
2. One party must have made a **binding offer**, and the other one has to accept it (**offer and acceptance**)
3. The contract **must be supported by consideration**

4. Both parties must express an **intention to be legally bound** by the agreement

Also:

1. The resulting agreement must have been a **genuine** one
2. Some contracts must be made in a **particular form**
3. The object of the contract must not be disapproved of by the law

Legal capacity

- Parties must be competent
- **Natural persons – age of majority (consent), mental capacity**
- **Legal persons – properly registered companies**

Offer and acceptance

- One party (offeror) must have made a binding *offer* to the other (offeree), and the offer must have been accepted
- Such an offer must be binding; parties must accept legal consequences.
- In legal terminology, an offer is a statement of willingness by the offeror to enter into a contract if the other party accepts all the terms of the offer

Consideration

- Every contract must be supported by consideration (the court only enforces a bargain, not a one-sided promise).
- The doctrine of consideration: any promise not supported by consideration is unenforceable.
- If the party that makes a promise gets nothing in return, the contract is unenforceable: each party must benefit.

Genuine agreement

- The resulting agreement must have been a genuine one
- The contract must reflect the **actual exchange of promises**, not a false one

Contracts in particular form

- In certain exceptional cases, the contract must have been made in a particular form
 - **Marriage**
 - **Contracts which must be in writing:** a transfer of shares, an assignment of copyright, a contract to pay someone else's debt...
- To enforce one of these contracts, a claimant must produce a writing signed by the other party that contains evidence of the contract

The object of the contract

- The object of a contract must be approved of by the law
- for ex. "to take a contract on the rival" is not a contract in law
- Such an agreement is not legally enforceable

Defective contracts

- a) **Void** – any contract that lacks one of essential requirements
 - It does not give rise to any legal rights or duties

- It does not exist as far as the law is concerned
- b) **Voidable** – valid to start with, but may be avoided at the option of one of the parties
 - A contract affected by a flaw (fraud, duress, misrepresentation, undue influence)
 - ex. The doctrine of duress allows a party to get out of a contract when he was forced to enter into contract by threats from the other party
- c) **Unenforceable** – contract that is valid in all respects, but cannot be enforced by an action in law because the party wishing to enforce it lacks some kind of evidence (evidence in writing)

Breach of contract

- Contract typically creates an obligation to do or avoid doing something, or to pay a sum of money
- Breach of contract is the refusal or failure by a party to a contract to perform an obligation imposed on them under the contract
- If one party does not do what they have promised to do, they are in breach of contract

Legal remedies

- The injured party is entitled to a legal remedy such as damages or equitable remedies:
- 1. **Specific performance** – an order to make a party perform his obligations under the contract (izvršenje ugovorne obveze po nalogu suda)
- 2. **Injunction** – a court order to stop someone breaching a term of the contract
- 3. **Rescission** – cancellation of the contract

Damages

- The aim of damages in contract law is to put the claimant in the position he would have been in if the contract had been performed properly
- Damages are designed to compensate for the loss one has suffered
- a) **Expectation damages**
- b) **Unliquidated damages** – the court decides how much will be awarded in damages
- c) **Liquidated damages** – parties decide in advance

Vocabulary

1. **Match the terms denoting essential preconditions for a binding common law contract provided in the box with their definitions (legal capacity, offer, consideration, acceptance, compensation, intention to be legally bound)**
 - **legal capacity** = power provided under law to a natural person or a juridical person to enter into binding contracts
 - **consideration** = something of value which must be given for a contract to be enforceable
 - **acceptance** = statement given by the person receiving the offer by which he or she accepts the offer subject to contract (a precondition for a contract to be legally binding)
 - **intention to be legally bound** = an expression of willingness to contract on specified terms, made with the intention that it is to be binding once accepted by the person to whom it is addressed
 - **offer** = a proposal to enter into an agreement, usually accompanied by an expected acceptance
 - **compensation** = pecuniary remedy awarded to an individual who has sustained an injury in order to replace the loss caused by the injury
2. **Fill in the blanks with the most appropriate words from the list: consideration, sue, obligation, illegal, breach, fraud, mutual, capacity**
 - A contract is an agreement that creates a binding **obligation** upon the parties. The essentials of a contract are as follows: **mutual** agreement, a legal **consideration** which need not be financial; parties who have legal **capacity** to make a contract; absence of **fraud** or duress; and a subject matter that is not **illegal** or against public policy.

- In case of a **breach** of contract, the injured party may go to court to **sue** for damages, for injunction, or for specific performance if financial compensation would not compensate for the breach.

3. Explain the following terms and find their Croatian equivalents (video vocab) –
<https://www.youtube.com/watch?v=VnChrJuX7xg>

- **Frustration of a contract** – prestanak važenja ugovora; nemogućnost izvršenja ugovora
- **Repudiation of a contract** – odbacivanje ugovora; nepriznavanje postojanja ugovora
- **Arbitration** – arbitraža
- **Consideration** – protučinidba (naknada)
- **Representation/misrepresentation** – predstavljanje, lažno (krivo) predstavljanje
- **To settle a dispute** – riješiti spor
- **To award damages** – dodijeliti odštetu

4. Translate the following:

- **According to the definition, void contracts are those that do not give rise to legal effects they would if they were not void.**
- *Prema definiciji ništetni su oni ugovori koji ne proizvode pravne učinke koje bi imali da nisu ništetni.*
- **Voidable contracts give rise to legal effects as valid ones, but if they are set aside within the legally prescribed period of time, it is considered that there was no such legal effects.**
- *Pobojni su oni ugovori koji proizvode pravne učinke kao da je sve u redu, ali, ako u zakonskom roku budu poništeni, smatra se da tih učinaka nije ni bilo.*

Part two: A sale of goods contract

Unit 17 – Family law

Contents:

1. Family
2. Family law
3. Definitions of marriage; valid marriage, bars to marriage
4. Void and voidable marriage
5. Civil union
6. Divorce in the past and today
7. Domestic violence

Part one: Family and domestic relations

Family

- **Family can be defined as:**
 1. a group of people who share a legal bond or a blood bond;
 2. a group of people related by blood or marriage (Oxford dict.);
 3. a primary group whose members assume certain obligations for each other and generally share common residence;
 4. a collective body of persons who live in one house and under one head or management (Black's Law Dict.)

Other definitions

- *A family is a group of individuals in which there is a generational connection present (i.e., a parent-child relationship is found). Additionally, family members provide close intimate contact (usually characterized by deeply held commitment, trust, respect, and a sense of longer term obligation. (Day, 2010. p.4)*
 - Day, R. D. (2010). *Introduction to family processes* (5th ed.). New York: Routledge.
- *Perhaps in the broadest sense of the word, a family is a group of people who have intimate social relationships and have a history together (Leeder, 2004, p. 25).*

- Leeder, E. J. (2004). *The family in global perspective : a gendered journey*. Thousand Oaks, Calif. ; London: Sage Publications.

Other families

- **Which definitions of family make sense to you?**
- **Points to consider:**
 - common residence?
 - legal bond?
 - “under one head or management”?
 - generational connection (parent-child relationship)?
 - “a history together”?
- **Think about different types of families. Match the type of a family with its definition:**

Type of a family	Definition
Nuclear family	the parents and their children living in the same residence or sharing the closest bonds
Extended family	all relatives, such as grandparents, aunts, uncles, and cousins, live in close proximity
Traditional f.	one parent (usually father) supports the members financially, while the other remains at home and tends to domestic duties
Adopted f.	family that shares legal bonds, but not genetic ones
Single parent f.	one parent and their children only as a result of divorce or the death of one parent
Foster f.	one or more adult parent serves as a temporary guardian for one or more children to whom they may or may not be biologically related
Childless f.	a couple with no children
Complex f.	three or more adults plus their children
Step family	the adults have divorced and remarried, bringing children from other unions together to form a new family

Part two: From the Family Lay Act 1996

Family law

- Family law is the branch of law that regulates family relationships, including marriage and divorce, the treatment of children, child abduction, adoption, and related economic matters.

The Family Law Act 1996

- In the UK, the Family Law Act of 1996 makes provisions for divorce and separation; legal aid in connection with mediation in disputes relating to family matters; proceedings in cases where marriages have broken down; rights of occupation of certain domestic premises; prevention of molestation; the inclusion in certain orders under the Children Act 1989 of provisions about the occupation of a dwelling-house and for connected purposes.

Marriage – definitions

- **Croatian law:** marriage is a legally regulated life union between a woman and a man.
- **In English law:** “a voluntary union for life of one man and one woman to the exclusion of all others” (definition given by Lord Penzance in the case *Hyde v Hyde and Woodmansee* in 1866)
- a contract based upon a voluntary private agreement by a man and a woman to become husband and wife
- **act or state of being joined as husband and wife**

Requirements for a valid marriage

1. **For life** – the intention of both parties must be a union for life, regardless of the availability of divorce
2. **Voluntary** – as any other contract, it must be entered into voluntarily, without coercion
3. However, in English law marriage is no longer necessarily entered into by one man and one woman, as **same sex marriage** became legal in England and Wales with the passage of the **Marriage (Same Sex Couple) Act in 2013**.
4. Nevertheless, it must be **monogamous**.

Conditions for a valid marriage

1. parties legally capable of contracting to marry
2. mutual consent or agreement
3. an actual contract in the form prescribed by law

Formalities

- A marriage must be celebrated in the presence of a **clergyman of the Church of England**, or (since 1836) of a **Registrar of Marriages**, or (since 1898) of an **'authorized person'** – **secular marriage**
- Two persons must be present as witnesses

Translate the following

- There are few regulations about starting a marriage, while the law relating to the duties of the parties in marriage, and to the dissolution of marriage, is strict and complex.

Termination of marriage

- Marriage can be **terminated** by death or divorce and it can be annulled. It is important to appreciate the distinction between **nullity** and **divorce** (or, in the case of civil partnership, **dissolution**).
- **Divorce** entails the termination of what had been a valid marriage.
- **Nullity** recognizes that, for legal purposes, there never was a valid marriage. Within the law of nullity we distinguish between **void** and **voidable** marriages and civil partnerships.

Bars to marriage

- **Youth** (the age of consent; now 18, before 1969 it was 21)
- **Consanguinity** (close blood relation) or affinity (relationship by marriage)

Void marriage

1. If either party is under sixteen
2. If one of the parties is over 16, but under 18, the law requires parental consent.
3. If parties are related by blood:
 - A) Ascendants and descendants, e.g. parent and child, grandparent and grandchild
 - B) Brother and sister, uncle and niece, nephew and aunt

Marriage Act, 1996

- A man may marry his stepmother, or a woman her stepfather, provided that the younger person is aged at least 21 and has not at any time before reaching the age of 18 lived as a child of the family of the older person
- **marriage between in-laws also permitted**

Bigamy

- A marriage celebrated between two persons, one of whom is at the time validly married, is void
- The person who knowingly enters into such a marriage is guilty of bigamy
- **Bigamy is a criminal offence**

Translate the following

- The parties must be at least 16 years old. If one of the parties is younger, the marriage is void. If one of the parties is over 16, but under 18, the law requires parental consent. There are also rules prohibiting marriage between certain categories of persons (relationships of **consanguinity** and relationships of **affinity**). It means that marriage is void if parties are within prohibited degrees, if one of them already has a **spouse** and if certain formal requirements were disregarded.
 - **'prohibited degrees' – stupanj srodstva u kojem je zakonom zabranjeno sklapanje braka**

Voidable marriage

- **Valid initially, but may be set aside because of:**
 - a) lack of due consent
 - b) duress (coercion)
 - c) mistake as to identity
 - d) mental incapacity (unsound mind)

Voidable marriage – cont.

- According to Matrimonial Causes Act of 1973, marriage is voidable if there was **lack of consent** by either party, if either party was suffering from mental disorder, if the respondent was pregnant by a third party at the time of marriage, if the marriage was not consummated owing to incapacity of either party or wilful refusal of the respondent and on grounds relating to gender recognition.

Civil partnership

- According to the **Civil Partnership Act 2004**, a civil partnership is a relationship between two persons of the **same sex ("civil partners")** which ends in death, dissolution or annulment.
- The principal distinction between marriage and civil partnership lies in the parties' genders: spouses must be of the opposite sex, civil partners of the same sex.

Marriage vs. other contracts

- Like any other contract, marriage **can be avoided, varied or terminated in certain circumstances**. But marriage is not like other contracts known to the law: the rules governing marriage are not determined by the contracting parties, but by the law of the land.

Marriage v. other contracts cont.

- **Marriage is a contract, but it is not like other contracts because:**
 - a) the parties cannot agree on the rules governing marriage
 - b) the parties cannot agree what is to be regarded as a breach of contract (because it must be for life), nor what compensation should be paid in case of such a breach (a different type of contract regulates this: prenuptial agreement)

Comprehension check

- **Complete the following sentences:**
 - A marriage entered into under duress is _____.
 - Bars to marriage are youth and _____.
 - A valid English marriage must be monogamous, for life and **voluntary**
- **Complete the following sentences from the information in the text:**
 - If either party is under sixteen _____.

- If one of the parties is sixteen or over but under eighteen _____.
- A marriage is voidable if _____.

Void, voidable or valid?

1. A **valid** marriage is one which is in no sense defective and is, therefore, binding on the parties; it can only be terminated by death or by a decree of divorce.
2. A **void** marriage is not really a marriage at all, in that it never came into existence because of a fundamental defect.
3. A **voidable** marriage is a valid marriage unless and until it is annulled; it can be annulled only at the instance of one of the spouses during the lifetime of both.

Divorce

- Divorce is the legal termination of marriage (dissolution of marriage).
- Judicial divorce was introduced by the Divorce and Matrimonial Causes Act 1857.
- Under English law, the only basis for divorce is the irretrievable breakdown of marriage
- The official request to a court to end a marriage is called divorce petition.

Fault divorce

- Until 1969 (the Divorce Reform Act) divorce was fault-based and the matrimonial offence was the sole **ground for divorce**.
- Divorce would be granted only to the innocent party (petitioner) who could prove that the other, guilty party (respondent) committed *a matrimonial offence*
- Largely based on the church (ecclesiastical) law

Matrimonial offences

1. **Adultery**
2. **Intolerable Cruelty**
3. **Desertion**

“Uncontested” divorce

- Both sides deliberately agreed that the wrongful conduct would be claimed – even untruthfully
- **Perjury – lying under oath**

No-fault divorce

- **Available since 1969**
- Pioneered in the US by the State of California with the passage of the Family Law Act of 1969
- The Act signed by Governor R. Reagan on September 4, 1969 and became valid on January 1, 1970
- Less specific reasons, such as incompatibility or irreconcilable differences

Five facts

- There is only one legal ground for divorce, which is that the marriage has irretrievably broken down. The person who starts proceedings, (the Petitioner) must prove that the marriage has irretrievably broken down by establishing one of the following five facts:
 1. **Adultery**
 2. **Unreasonable behaviour**
 3. **Desertion**
 4. **2 years separation with consent**
 5. **5 years separation (no consent required)**

Five facts – explained

- a) that the respondent has committed adultery and the petitioner finds it intolerable to live with the respondent (**adultery**)
- b) that the respondent has behaved in such a way that the petitioner cannot reasonably be expected to live with the respondent (**unreasonable behaviour**)
- c) that the respondent has deserted the petitioner for a continuous period of at least two years immediately preceding the presentation of the petition (**desertion**)
- d) that the parties to the marriage have lived apart for a continuous period of at least two years immediately preceding the presentation of the petition and the respondent consents to a decree being granted (**two-year separation with consent**)
- e) that the parties to the marriage have lived apart for a continuous period of at least five years immediately preceding the presentation of the petition (**five-year separation and the respondent's consent is not needed**)

Court decisions

- The court decides how to divide communal property and who gets custody of the children
- If one of the spouses is financially dependent on the other, the court will usually order the other one to pay alimony (AmE) or maintenance (BrE)

Elements

1. **Dissolving the marriage** – the formal legal process by which the marriage is ended
 - petition for divorce
 - acknowledgement of service
 - the divorce decree is in two stages: the decree nisi and the decree absolute
 - decree nisi – interim divorce order
 - decree absolute – final divorce order
 - The petitioner may apply for the decree nisi to be absolute after the expiration of six weeks, unless the court fixes a shorter time
2. **Financial arrangements** – the process of dividing up the marital assets and agreeing on maintenance
 - Apply for Ancillary Relief
 - Financial disclosure
 - Negotiation
 - Obtain financial court order
3. **Childcare arrangements** – the process of deciding who the children of the marriage will live with (residency) and how much contact the non-resident parent will have
 - Agreement
 - Application for residence and/or contact
 - Investigation
 - Residency court order

Divorce today

- In the UK, 40 % of marriages end in divorce
- In the USA almost 50 %
- Croatia – current statistics show that every third marriage ends in divorce
- **Match the verbs in the left column with the nouns in the right column:**

to hear	the petitioner
---------	----------------

to commit	adultery
to satisfy	the court
to grant	a decree
to desert	a petition

Domestic violence

- Domestic violence can be defined as any incident of threatening behaviour, violence or abuse (psychological, physical, sexual, financial or emotional) between adults who are or have been intimate partners or family members, regardless of gender or sexuality.
- It is a pattern of behavior which involves violence or other abuse by one person in a domestic context against another

Abuse

- Abuse may occur in many forms and that it is not restricted to people living together, but also includes violence between family members and intimate partners.
- a) **physical** – hurting or threatening to hurt
- b) **emotional** – often unrecognised and can be very hurtful
- c) **economic/financial** – if someone is controlling your money, keeping you financially dependent, or making you ask for money unreasonably
- d) **social** – if someone is insulting you or teasing you in front of other people, keeping you isolated from family and friends, controlling what you do and where you go

Abusers

- the majority of abusers are men
- abusers come from all walks of life, from any ethnic group, religion, class or neighbourhood
- they can be of any age
- watch the video Domestic violence
- <https://www.youtube.com/watch?v=hhHdIhfK7LQ>

Victims

- may be trapped in domestic violent situations through isolation, power and control, insufficient financial resources, fear, shame or to protect children
- may experience physical disabilities, chronic health problems, mental illness, limited finances, and poor ability to create healthy relationships
- may experience **post-traumatic stress disorder**

Purpose of domestic violence

- one purpose and one purpose only: to gain and maintain total control over their partner/victim
- it can take place in heterosexual or same-sex relationships

Domestic violence in the UK

- less than a half of all incidents of domestic violence are reported to the police, but they still receive one domestic violence call every minute in the UK

- one in four women experience domestic violence over their lifetimes and between 6-10% of women suffer domestic violence in a given year

Legal remedies

- Under the Family Law Act 1996, the victim of domestic violence (the applicant) can seek a **court order** that the abuser (the respondent) does not molest them and secondly, that the molester leave and stay away from the family home. These are known as **non-molestation orders** and **occupation orders**.
- **Read the paragraph about domestic violence and supply the missing words:**
 - Domestic violence can be defined as any incident of **threatening behaviour, violence or abuse** between adults who are or have been intimate partners or family members, regardless of **gender or sexuality**.
 - Abuse may occur in many forms and is not restricted to people living together, but also includes violence between **family members and intimate partners**.
 - Under the **Family Law** Act 1996, a victim of domestic violence (the applicant) can seek a court order that the abuser (the respondent) does not molest them (**non-molestation order**) and secondly, that the molester leave and stay away from the family home (**occupation order**).

Vocabulary

- Registrar – matičar
- Coercion (duress) – prisila, prinuda
- Consent – pristanak, privola
- **Bars to marriage – zapreke braku**
- **Consanguinity – krvno srodstvo**
- Dissolution of marriage – razvrgnuće braka
- Irretrievable breakdown of marriage – trajno poremećeni bračni odnosi
- **Valid marriage – važeći brak**
- **Void marriage – ništetan brak**
- **Voidable marriage – poništiv (pobojan) brak**
- Breach of contract – raskid ugovora
- **Prenuptial agreement – predbračni ugovor**
- To file a divorce petition – podnijeti zahtjev za razvod braka
- Petitioner – tužitelj u brakorazvodnoj parnici
- Decree of divorce – rješenje o rastavi braka
- No fault divorce, uncontested divorce – sporazumni razvod braka
- Decree Nisi – privremeno rješenje o razvodu braka
- Decree Absolute – pravomoćno rješenje o razvodu braka
- Ancillary relief – financijska pomoć kod razvoda
- Financial disclosure – iznošenje podataka o financijama
- Domestic violence – nasilje u obitelji
- **Non-molestation order – zabrana uznemiravanja (nalog o neuznemiravanju)**
- **Occupation order – nalog o protjerivanju (izbacivanju)**

Exercises

1. Match the term with its explanation.

Term	Explanation
consanguinity	a close blood relation
adultery	a voluntary sexual intercourse between a married person and someone other than that person's current spouse

ancestor	a person from whom one is descended
cohabitation	the state of living together
petitioner	a person who makes a formal application to a court for divorce
sibling	each of two or more children or offspring having one or both parents in common

2. Fill in the blanks with the most appropriate word(s) from the list: *grounds, separation, irretrievably, cohabitation, circumstances, respondent, family, relief*

- An action for **separation** or divorce begins by filing a signed and sworn statement with the court indicating that sufficient grounds for **relief** from marriage exist. After the complaint is filed, it is served on the **respondent**, who has time to file an answer to the complaint. The **family** court can issue a decree for divorce under a number of **circumstances**. The court will grant a divorce when the marriage is **irretrievably** broken. The parties can also get a divorce when there is no reasonable likelihood that **cohabitation** will resume and the court is satisfied it would not be harsh or contrary to the public interest to grant the divorce on the **GROUND**S requested.
- Translate the above paragraph!
-

Unit 18 – Company law

Part one: Setting up a business in the UK

- When setting up a business what information are relevant for selecting the most appropriate legal structure?
- Which characteristics of a business entity would interest you if you were setting up a business of your own?
- Do ex. II on p. 178.
- Sole Proprietorship, LLC, or Corporation?
- <https://www.youtube.com/watch?v=SUfX6dglXoY>

Company law

- **company** – a legal entity representing an association of people
- **3 common types of businesses**—sole proprietorship, partnership, and corporation—and each comes with its own set of advantages and disadvantages
- **company law** – the branch of law relating to the formation and operation of companies

Most common business entities in the UK

1. sole trader
2. partnership
 - a) Ordinary (general) partnership
 - b) Limited liability partnership
3. limited company
 - a) private limited company
 - b) public limited company

UK entity	USA entity	Croatian entity
Sole trader	Sole proprietorship	Trgovac pojedinac/obrtnik
Ordinary partnership	General partnership	Javno trgovačko društvo
Limited partnership	Limited partnership	Komanditno društvo
Private limited company (Ltd.)	S corporation	Društvo s ograničenom odgovornošću (d.o.o.)
Public limited company (Plc.)	C corporation	Dioničko društvo (d.d.)

- Read the text on pp. 179-181 and complete the table.

	Type of entity	Ownership	Management	Liability of owners	Taxation
Sole trader	Unincorporated business, HMRC, natural person	1 person	Self-employed owner	Not separate	Income tax
General partnership		Co-owners	Co-owners		
Limited partnership					
LLP				Limited liability	VAT
Ltd.	Legal person				
PLC	Legal person				

Sole trader

- also known as **sole proprietorship**
- a simple business structure whereby one individual runs and owns the entire business
- its legal existence is not separate from its owner's, that is, it is a natural person
- the owner keeps all of the profits of the business but, by having unlimited liability, he/she is also personally responsible for all of its debts and losses

Advantages	Disadvantages
• The simplest way to set up a business – low start-up costs • Less administrative paperwork • Owner in direct control of decision making • Minimal working capital required • All profits to the owner	• Owner fully responsible for all debts and obligations related to his or her business • Creditor would normally have a right against all of his or her assets, business or personal (unlimited liability) • Difficult to raise capital • Lack of continuity in business organization in the absence of the owner

Partnership

- a partnership involves 2 or more people (**partners**) going into business together as **co-owners** with a view to making a profit
- **2 types of partnership** – general and limited
 - A general ('ordinary') partnership** – partners manage the business and personally share (equally or as specified in the partnership agreement) responsibilities and the business's profits
 - A limited partnership** is one formed by up to 20 people, with at least one general partner who controls the company's day-to-day operations and is personally liable for business debts, and passive partners called limited partners

Partnership agreement

- Partnerships are usually set up by drawing up **partnership agreements** – binding contracts between the partners.
- **It should address the following issues:**

1. Decision-making
2. Capital contribution
3. Salaries/distribution
4. Death/disability
5. Dissolution

Advantages	Disadvantages
• Ease of formation • Low start-up costs • Additional sources of investment • Broader management base	• Unlimited liability for general partners • Lack of continuity • Capital divided authority • Possible conflicts between partners

Limited company

- an artificial or legal person that is separate in law from its owners and has its own separate personality or legal entity
- the company can sue or own assets in its own name and have perpetual life despite changes in ownership
- the ownership of this type of business entity is divided up into equal parts called shares and owned by members or shareholders (limited liability of shareholders)
- The business is run by the board of directors whose members do not necessarily have to be the owners.
- The company is liable for corporation tax whereas the obligation of directors is to fill in a self assessment tax return and pay income tax.

Articles of association (incorporation)

- The document that sets out the rules for running the company's internal affairs
- Includes the names of the incorporators (the responsible parties), the amount of stock it will be authorized to issue and its purpose
- Determines the rights and obligations of members and directors
- Shareholders elect a **board of directors**

Private limited company

- This type of company cannot offer its shares to the general public for sale
- It is typically smaller than other companies and may have just one shareholder (**a single-member company**)
- There is no minimum share capital requirement

Public limited company

- The company can raise additional capital by issuing shares to general public on a stock exchange market
- It must have at least 2 shareholders whose liability is limited to their contributions

Advantages	Disadvantages
• Perpetual life (succession) – continuous existence • Limited liability (shareholders protected from personal claims) • Access to capital • Transferability of shares (or of ownership) – shares can be bought, sold, exchanged or given	• Closely regulated • The most expensive form to organize • Extensive record keeping necessary • Higher taxation (double taxation of dividends, larger business tax rates)

- | | |
|--|--|
| <ul style="list-style-type: none"> Professional, specialized management | |
|--|--|

Part two: A partnership agreement

Vocabulary

- business entity – poslovni subjekt
- natural person – fizička osoba
- artificial person – pravna osoba
- sole trader – trgovac pojedinac, obrtnik
- partnership – trgovačko društvo, društvo osoba
- limited liability partnership – komanditno društvo
- private limited company (ltd.) (us. c corporation) – društvo s ograničenom odgovornošću (d.o.o.)**
- public limited company (plc.) (us. s corporation) – dioničko društvo (d.d.)**
- corporation – društvo kapitala
- articles of association – statut društva
- creditor – vjerovnik
- perpetual life – trajni život
- limited liability – ograničena odgovornost
- transferability of shares – prenosivost dionica

1. Complete the following:

- The sole proprietor has **UNLIMITED** control over the business.
- In a partnership, profits and losses are shared **EQUALLY** unless otherwise agreed.
- One of the attributes of a corporation is **LIMITED** liability.

2. Translate the following:

- Each business form has its own advantages and disadvantages. It is selected by people contemplating the formation of a business from the standpoint of financial responsibility, control of operation, possibilities of growth and expansion, and the possibilities of capitalization and financial development.
-

Unit 19 – Employment law

- Employment law regulates the rights and duties of employers and employees. Its main aim is to protect workers' rights and ensure that they are treated fairly by the employer and provided adequate working conditions.
- Think of ways employment relations are regulated by the law. Why do you think the state should protect employees? What kinds of dangers could employees be exposed to in an employment relationship?
 - What forms of employment can you think of?

Forms of employment

- Full-time employment
- Part-time employment
- Casual employment
- Fixed term employment
- Temporary employment
- Agency employment
- Apprenticeship
- Seasonal employment

Part one: Legal regulation of employment

Read the short introductory paragraph and answer the questions

- In many countries employment relations are governed by comprehensive **labour codes**.
- In the UK, sources of employment law include statutes, such as the Employment Act (2008), Employment Relations Act (2004), Equality Act (2010), etc.
- Statutory rights include the **minimum wage**, the right to **equal pay for like work**, non-discrimination, the right to **sick and parental leave**, the right to be represented by a **trade union**, etc.
- Case law still provides numerous tests for determining **employee status** (full-time, part-time, occasional work, agency work) where a clear, written contractual specification is lacking.

Employment contract

- regulates the relationship, rights and obligations of a particular employee with regard to the employer.
- an imbalance of bargaining power between the employer and the employee.
- For this reason, some statutory protection is provided, e.g. protection in the event of employment contract termination and protection against discrimination.
- The contents of an employment contract may be dictated by a **collective agreement** – result of negotiations between the employer and the trade union.
- statute obliges the employer to provide **written particulars** of employment

Employment particulars

- An employer must give employees a 'written statement of employment particulars' if their employment contract lasts at least a month or more. This isn't an employment contract, but will include the main conditions of employment.
- The document usually called '**principal statement**' **must contain the following information**:
 1. employee's name and the employer's name
 2. job title or a brief job description
 3. remuneration details (pay rate and working hours; when pay will be received)
 4. notice periods
 5. place of work
 6. commencement of employment
 7. holiday entitlement / annual leave
 8. sick leave and sick pay arrangements
 9. pensions and pension schemes
 10. information about disciplinary and grievance procedures
 11. any collective agreements that affect your employment terms or conditions
 12. for a **temporary employee** how long the employment is expected to continue, or for a **fixed term worker** the date when employment will end

End of employment

- Employment can be terminated by the expiration of a **fixed-term contract**, by **mutual agreement**, or by death or **dissolution** of the employer.
- If the employer has a **surplus** of workers, an employee can **be made redundant**. **Redundancy payments** to the employee are sometimes made in such cases.
- In the event of **gross misconduct** an employee can be **summarily dismissed**, where employment is terminated instantly or as soon as reliable evidence of misconduct is obtained.

- If the **notice period** for dismissal was not observed by the employer, or if the contract was terminated on unlawful grounds, the employee may have a claim for **unfair** or **wrongful dismissal**.
- An employee can also **resign**, observing the agreed notice period.
- If an employee is **forced to resign** as a result of breach of contract by the employer or due to unfair treatment or discrimination, he/she may file a claim for **constructive dismissal**.
- Complete Ex. V (p. 194) and match the terms with their Croatian equivalents:
- **otkaz; napuštanje radnog mjesta zbog prisile; izvanredni otkaz; protupravno otpuštanje; otpuštanje zbog viška radne snage**

Exercises

V Match the terms from the text with the corresponding definitions

Redundancy	This refers to the situation where an employee has been laid off because the amount of workload no longer justifies his employment.
Summary dismissal	This is a lawsuit available to the employee upon his own resignation. The employee has to prove that the employer was in breach of contract, which forced him to resign.
Unfair/wrongful dismissal	This is a lawsuit available to the employee if he believes that his dismissal was unlawful on account of the grounds for dismissal or because there was a breach of procedure in the termination of employment.
Constructive dismissal	This refers to termination of employment by the employer available when an employee has committed gross misconduct.
Resignation	This refers to the situation where an employee initiates the termination of employment for his own reasons (e.g. to find better employment elsewhere)

Employment disputes

- Dissatisfaction can arise on either side of the employer-employee relationship.
- Concerns can be addressed informally by instigating a discussion in good faith with a view to finding a quick and amicable solution.
- In case the informal attempt fails, procedures must be laid down by the employer for handling **grievances (employee complaints)** and for **disciplinary procedures**.
- If these internal procedures fail to yield results, assistance can be sought from a third party, who may act as a **mediator** or an **arbiter** in an **alternative dispute resolution procedure**.
- The next step: either a lawsuit before a county court, or a claim brought before an **employment tribunal**.
- An **employment tribunal** comprises three members: a **chairperson** (a barrister or a solicitor) and two **lay members**, one typically from the **pertinent industry**, and the other often with experience in **trade union** activities.
- The tribunals have quicker and more informal procedures than regular courts.
- Appeals against their decisions are heard by the **Employment Appeals Tribunal (EAT)**, with the **Court of Appeal** as the third instance.
- The available legal remedies are **compensation**, **reinstatement** (returning to previous employment) and **re-engagement** (obtaining another position with the same employer).
- Compensation is the most frequently sought remedy, although a limit is set as to the amount of compensation a tribunal can award.
- All other claims can be presented before county courts. These have more formal and complicated rules and procedures, but can award higher **damages**.

Vocabulary

Read the text and find Croatian equivalents for the following phrases:

- comprehensive labour codes – sveobuhvatni zakoni o radu
- the right to equal pay for like work – pravo na jednaku plaću za jednaki posao
- the right to sick and parental leave – pravo na bolovanje i porodiljni dopust
- to provide minimum statutory protection – osigurati minimalnu zakonsku zaštitu
- employment contract termination – raskid ugovora o radu
- negotiations between the employer and the trade union – pregovori između poslodavca i sindikata
- particulars of employment – podaci o zaposlenju
- remuneration – naknada za rad
- holiday entitlement – pravo na godišnji odmor
- pension schemes – mirovinski fond
- termination of employment – raskid/prestanak radnog odnosa
- expiration of a fixed-term contract – istek ugovora o radu na određeno vrijeme
- to make a redundancy payment – dati otpremninu u slučaju otpuštanja zbog viška radne snage
- to dismiss summarily – dati izvanredni otkaz ugovora o radu
- alternative dispute resolution (adr) – alternativno rješavanje sporova
- to bring a claim before an employment tribunal – podići tužbu pred sudom za radne sporove

IV Replace the underlined expressions with expressions from the text.

1. In case of a dispute, employees are represented by their labour associations. TRADE UNION
2. The law guarantees a minimum statutory pay.
3. Details of employment rights and obligations, including details concerning your pay are enclosed with your employment contract.
4. Employee complaints can be filed with the line manager. GRIEVANCES
5. The number of available days off is not negotiable. HOLIDAY ENTITLEMENT
6. The tribunal ordered that the claimant be returned to the position held before the lawsuit. REINSTATED

Part two: Discrimination in the workplace

- *Discuss the following questions:*
 1. How would you define discrimination?
 2. Are you aware of any kind of discrimination in your environment? In what circumstances can it appear?
 3. Do you think it is important for a country to have good anti-discrimination laws? Justify your opinion.

Discrimination

- the intended or accomplished preferential treatment of persons or social groups for reasons of certain generalized traits
- actions and practices which deny the equal treatment of members of a social group

Discrimination in the Workplace

- A frequent cause of dissatisfaction among employees comes from unequal or unfair treatment, or **discrimination**.
- Certain special conditions exist in which unequal treatment of employees may be justified (such as experience, seniority, additional responsibility, special skills, etc.), but sometimes this is a result of discrimination.

Equality Act 2010

- From **1 October 2010**, the **Equality Act** replaced most of the **Disability Discrimination Act (DDA)**

- The Equality Act 2010 provides comprehensive protection against several types of discrimination not only for employees, but also candidates and job applicants.

Protected characteristics

- **The Equality Act** protects people against discrimination because of the protected characteristics that we all have.
- Under the Equality Act, there are **9 protected characteristics**:
 1. age
 2. disability
 3. gender reassignment
 4. marriage and civil partnership
 5. pregnancy and maternity
 6. race
 7. religion or belief
 8. sex
 9. sexual orientation

Discrimination in the Workplace

- Discrimination can occur **directly or indirectly**.
- While direct discrimination is directed against the person in question, indirect discrimination occurs when a rule applying to all employees has a particular negative impact on a particular employee.

Types of discrimination

- a) Direct discrimination** – where someone is treated less favourably than another person because of a protected characteristic
- b) Associative discrimination** – this is direct discrimination against someone because they are associated with another person who possesses a protected characteristic
- c) Discrimination by perception** – this is direct discrimination against someone because others think that they possess a particular protected characteristic. They do not necessarily have to possess the characteristic, just be perceived to.
- d) Indirect discrimination** – this can occur when you have a rule or policy that applies to everyone but disadvantages a person with a particular protected characteristic
- e) Harassment** – this is behaviour that is deemed offensive by the recipient. Employees can now complain of the behaviour they find offensive even if it is not directed at them.
- f) Victimisation** – this occurs when someone is treated badly because they have made or supported a complaint or grievance under this legislation.

Translate types of discrimination

- **direct discrimination** – Izravna diskriminacija
- **associative discrimination** – diskriminacija na osnovi povezanosti, sudiskriminacija
- **discrimination by perception** – diskriminacija na osnovi percepcije
- **indirect discrimination** – neizravna diskriminacija
- **harassment** – uznemiravanje
- **victimisation** – viktimizacija

Harassment

- "unwanted conduct related to a relevant protected characteristic, which has the purpose or effect of violating an individual's dignity or creating an intimidating, hostile, degrading, humiliating or offensive environment for that individual".
- protection from harassment can also be sought if harassment occurred due to association or perception.

Victimisation

- Victimisation is defined in the Act as **treating someone badly because they have done a 'protected act'** (or because you believe that a person has done or is going to do a protected act).
- **A 'protected act' is:**
 1. Making a claim or complaint of discrimination (under the Equality Act).
 2. Helping someone else to make a claim by giving evidence or information.
 3. Making an allegation that you or someone else has breached the Act.

Match the terms with their definitions.

Harassment	behaviour that is deemed offensive by the recipient
Direct discrimination	direct discrimination against someone because others think that they possess a particular protected characteristic
Victimisation	treating someone badly because they have made or supported a complaint or grievance
Associative discrimination	discrimination against someone because they are associated with another person who possesses a protected characteristic
Indirect discrimination	treating someone less favourably than another person because of a protected characteristic
Discrimination by perception	having a rule or policy that applies to everyone but disadvantages a person with a particular protected characteristic

Discussion

- **Discrimination can occur even before employment starts.** Discriminatory practices can be found during the **recruitment procedure**. The text you are about to read concerns discrimination during recruitment and is intended as a **guide for employers** looking to employ new staff.
- Before you read, discuss possible ways in which potential candidates for a job might be discriminated against in the following steps of the recruitment procedure:
 - a) job advertisements
 - b) job interviews
 - c) selecting among a number of candidates

Basic business English

Money

- Coined money (coins)
- Folding money (banknotes)
- Foreign currency
- Funny money
- Can you guess the meaning of:
 - a) Money spinner
 - b) Money bag v. moneybag (money-bag)

- c) Money laundering
- d) Money talks
- e) Hot money
- f) Smart money
- g) Easy money
- h) Seed money

True or false?

- The love of money is the root of all evil
- A fool and his money are soon parted
- There are some things money can't buy. For everything else, there's Mastercard
- Money makes the world go round
- Time is money

Lend vs. borrow

- What is the difference between lending money and borrowing money?
- **lend** – posuditi nekomu
- **borrow** – posuditi od nekoga
- Can I _____ some money from you?
- Are you joking? I _____ you some money last week!

How can you get money?

- You can earn/inherit/save/raise/make/lose money
- **earn** – zaraditi
- **inherit** – naslijediti
- **save** – uštedjeti
- **raise** – prikupiti

Money you can get...

- **What is the difference between:**
 - a) Salary
 - b) Pay
 - c) Wages
 - d) Fee
 - e) Income
 - f) Damages
 - g) Reward
 - h) Scholarship

Money you have to give...

- Bill
- Fine
- Toll
- Tax
- Tuition fee
- Contributions

Fill in the blanks with the words below:

- ***fine, fee, bill, charges, damages, salary, wages, income, check***
- There will be an increase in postal and telephone **charges**.
- Have you seen our telephone **bill** this month?
- John got \$2,000 in **damages** from the bus company he had sued.
- He waved to the waiter to get the **check**.
- She paid a \$1,000 **fine** for **salary** tax evasion.
- There is a difference in **wages** between a manager and an employee.
- My lawyer's **fee** was higher than I expected.
- He lives on occasional daily **income**.

Revision – vježba za ispit

1. In which of the following cases is the employment terminated by the employee?
 - a. Unfair dismissal
 - b. Constructive dismissal**
 - c. Summary dismissal
 - d. Redundancy
2. Complete the sentence by filling in the appropriate term.
 - If parties to a marriage are within prohibited degrees the marriage is **invalid**
3. Complete the sentence by filling in the appropriate term.
 - _____ is the process of legally declaring a corporate entity as separate from its owners.
4. Complete the sentence by filling in the appropriate term.
 - Financial sanction in criminal law is called _____
5. Complete the sentence by filling in the appropriate term.
 - _____ is in question when a person is discriminated against because he/she is closely related to somebody possessing a protected characteristic.
6. Complete the sentence by filling in the appropriate term.
 - Employment law regulates relations between employers, employees collectively and trade unions.
7. Match the collocations
 - Appeals, the court, employment, adultery, shares, a divorce, costs, accounts, obligations

terminate	employment
assume	
hear	appeals
satisfy	the court
commit	adultery
grant	a divorce
keep	
issue	
incur	costs

8. Translate the following sentences into Croatian.
 - The written particulars typically include the names of the contracting parties, remuneration details, working hours, holiday entitlement and pension schemes.
 -
 - The Matrimonial Causes Act of 1973 clearly laid down that there is only one ground for divorce: that the marriage has broken down irretrievably.

-
- Companies generally raise capital for their business ventures by issuing shares.
-

9. Match the collocations

blood	bond
foster	care
parental	consent
domestic	violence
judicial	divorce

10. Fill in the gaps with appropriate words.

- A judge of the court may, on an **application** made to him, allow the presentation of a **petition** for divorce within the specified period on the **ground** that the case is one of exceptional hardship suffered by the or of exceptional depravity on the part of the; but the judge shall have regard to the **interests** of any child in the family and to the question whether there is reasonable probability of a **reconciliation** between the **parties** during the specified period.

11. Choose the correct answer.

- Treating someone less favourably because others think they possess a protected characteristic is called:
 - Direct discrimination
 - Victimisation
 - Discrimination by perception**
 - Indirect discrimination
 - Associative discrimination

12. Complete the statement.

- Marriage is a voluntary and monogamous union for **life**.